

IPR102 - CHUẨN NHUNG HOÀNG

★ 5.0 (285 đánh giá)

Thuật ngữ trong học phần này (548)

If a mark or get-up has been used long enough to have generated a reputation, the owner can stop a competitor from 'passing-off' goods or services as if they originated with the owner by use of identical or similar marks or get-ups. To do this the owner must show: (NHUNG HOÀNG) a. there is a reputation in the mark or get-up b. there has been confusion in the market place c. the owner has suffered damage d. All A+B+C must be proved together	d 
Adding some words in a song without consent of author is an infringement of (NHUNG HOÀNG) a. Reproduction right b. Public performance right c. Integrity right d. False attribution	c. Integrity right (quyền bảo toàn toàn vẹn sản phẩm)
To be protected, unregistered trade mark must (NHUNG HOÀNG) a. Have reputation b. Be distinctive for the goods or services for which it has been used c. Both be distinctive and have reputation d. Be distinctive but do not have reputation	c
In the UK trade mark law, when is "goodwill" generated by the use of the mark? (NHUNG HOÀNG) a. When the mark could have been registered but the owner decided not to register it b. When the mark is unregistrable because it does not meet the requirements of the Trade Marks Act 1994 c. A and B are correct d. A and B are incorrect	c

When the mark could have been registered but the owner decided not to register it, and when the mark is unregistrable because it does not meet the requirements of the law (i.e Trade Marks Act 1994). In both cases, use of the mark generates what is known as (NHUNG HOÀNG) A. Good hope B. Goodwill C. Good faith D. Good use	B
An article is referred to without naming the author. This is an infringement of..... (NHUNG HOÀNG) A. Reproduction right B. Paternity right C. Integrity right D. False attribution	B
Case: Kastenholtz, vs Office for Harmonisation in the Internal Market (OHIM), Qwatchme A/S [2013] T-68/11 (06 June 2013) What are the findings that the OHIM's third Board of Appeal dismissed the Kastenholtz's application for a declaration of invalidity appeal? A. The contested design was different from the earlier designs B. The contested design possessed individual character C. The contested design could not be regarded as being a reproduction or an adaptation of the earlier works of art. D. All of the above	D
Duration of false attribution right according to UK law (NHUNG HOÀNG) A. Lasts for the life of its creator plus a further 50 years. B. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work C. Lasts for the life of its creator plus a further 20 years. D. None of others is correct	C

In a case on Registered design dispute, if the defendant (the suspected infringer) can prove that the design was created independently by himself/herself, then: A. There is not infringement B. There is an infringement C. There is an infringement only when the owner shows that there has been copying. D. All of others are correct	C
Singing a song in a party with friends is.(NHUNG HOÀNG) A. Infringement of reproduction right B. Infringement of public performance right C. Infringement of false attribution right D. Not an infringement of copyright	D
What are Civil remedies?(NHUNG HOÀNG) A. Provisional measures, Injunction, imprisonment B. Delivery-up, Compensatory damages, Punitive damages; and Account of profits C. Imprisonment, Punitive damages; and Account of profits D. Delivery-up, Imprisonment, Compensatory damages	B
Duration of economics right in films according to Vietnam law(NHUNG HOÀNG) A. Lasts for 50 years from the year the film or record was made or, if it is released to the public, 50 years from its release B. Lasts for the life of its creator plus a further 50 years. C. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work D. Lasts for 75 years from the end of the year in which the film was created	D
Which of these rights is not generally regarded as part of design law? a. Registered designs b. Design right c. Trade mark right d. Both registered designs and design right	c

Which of the following is NOT protected by an artistic copyright accordinator UK law?**(NHUNG HOÀNG)**

A

- A. A fully prepared text, a note or in shorthand, on tape or disk
- B. A recording of light or other radiation on any medium on which an image is produced or from which an image may by any means be produced
- C. Technical drawings, photographs and to designs of buildings and other structures
- D. Any drawing, diagram, map, chart or plan

When does the owner of a registered design have the right to start proceedings for infringement of her/his rights?**(NHUNG HOÀNG)**

B

- A. When the registration is applied
- B. When a certificate is issued and the registration is published
- C. When the representation of the design is completed
- D. When the owner of the registered design found out an infringement of her/his rights

A coffee mug having a textured surface created by Kevin, the surface decoration can be protected by:**(NHUNG HOÀNG)**

A

- A. Registered designs
- B. Design right.
- C. Copyright
- D. None of the above

Cellupro, a company that designed and manufactured cell phones, had a unique design to their products and a particular color for their phones and packaging. This design and color is known as

a

- a. trade dress.
- b a service mark.
- c. a fanciful mark.
- d. trade style.

According to UK law, to be granted suspension of release by custom authorities, the applicant must (NHUNG HOÀNG)	d
a. Provide adequate evidence to prove that under the laws of the country of importation, there is prima facie an infringement of the right holder's intellectual property right b. Supply a sufficiently detailed description of the goods to make them readily recognizable by the customs authorities c. Provide a security or equivalent assurance sufficient to protect the defendant and the competent authorities and to prevent abuse d. All of others are correct	
While proving for the reputation of an unregistered mark, the owner need to:	C
A. Prove that the unregistered mark or the get-up is distinctive B. Prove that the unregistered mark is taken to show a trade connection with a particular bus C. A and B are correct D. A and B are incorrect	
In the UK law, what the owner of a trade mark must show while proving the damage? (NHUNG HOÀNG)	C
A. actual loss of business B. loss of orders to the competitor C. a high risk of loss of business arising from the confusion D. the market loss	
An author of a song wants that people will refer to his name whenever they sing that song. What type of intellectual property right can he claim?	a
a. Copyright b. Trademarks c. Registered designs d. Patent	
An article with its exterior identical to a previous design but its internal feature which cannot be seen is different. This article is protected by:	A
A. Design right. B. Copyright C. Confidential information D. Trade secret	

Which of the followings can NOT be a registrable trademark?	d
a. A symbol b. A smell c. A single colour d. A generic name of the goods	
According to Vietnam law, duration of a broadcast program related right	a
a. Lasts for 50 years from the year it is released to the public b. Lasts for the life of its creator plus a further 50 years. c. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work d. Lasts forever	
According to TRIPS, after registration a mark must be used; if not, it can be cancelled after how many years?	A
A. 3 B. 4 C. 5 D. 6	
The public domain is referred to: (NHUNG HOÀNG)	B
A. Addresses in Web B. Any works not protected by copyright C. Public land D. The works protected by copyright	
In the case that the registered design of goods has been copied. Which of the following is RIGHT?	D
A. The person accused of infringement can prove his/her innocence B. The person accused of infringement cannot prove his/her innocence C. In protecting by registered design, the owner needs to prove copying D. Both A&C	
Which of the followings is protected by copyright	D
A. A word B. An idea C. A legal document D. An express of an idea	

A salesman of a bags shop exhibited and sold a fake Chanel clutch for 1.000.000vnd (provided that the real Chanel clutch costs 20.000.000vnd). But he told clients that this clutch is fake. This is..... A. A passing off B. Not a passing off but an infringement of trademark C. A passing off and an infringement of trademark D. Neither a passing off nor infringement of trademark	B
Which of the following is NOT an example of literary work? a. A book b. An engineer report or specification c. A bus timetable d. A legal document	c
What is licensing?(NHUNG HOÀNG) A. The permission to perform one or more acts covered by exclusive rights of the owner of patented invention/IPRs within a specific area and for particular time. B. The ownership of IPRs is transferred. C. The supplier promises to deliver the know-how to another party (recipient) for the use by that party. D. Owner gives up the ownership of his/her intellectual property	A
Which of followings can NOT be patented?(NHUNG HOÀNG) A. Discovery of scientific theory B. New methodology of running a technique system C. New way of operating an equipment D. New application of scientific theory	A
Collective trade mark means....(NHUNG HOÀNG) A. There are many users of this trade mark B. There are many owners of this trade mark C. There is a collection of trademarks used by one company D. There is a collection of products sharing this trademark	A
Cindy has very detailed and interesting ideas on writing a book. Based on these ideas, David writes a book without attribution of Cindy. David a. infringes paternity right b. infringes adaptation right c. Infringes reproduction right d. not infringes intellectual property right	d

Since the aim of a trade mark is to encourage purchasers to buy your company's product or your company's service by using the mark when they place an order, what is deemed essential for a sign to be called "trade mark" from business perspective? (NHUNG HOÀNG)	b
a. Trade marks should be slightly different from marks used by competitors to avoid confusion. b. Trade marks should be easy to remember and sufficiently different from marks used by competitors to avoid confusion. c. That trade marks should be easy to remember and similar to marks used by competitors to avoid confusion. d. That trade marks should be similar to marks used by competitors to create more confusions to enjoy benefits from dilution.	
Registered design does not protect:(NHUNG HOÀNG)	D
A. A design on parts which are assembled into a complex product B. A design on the whole or a part of a product C. A design on handicraft item D. A design on products such as vehicle spare parts which are not seen in normal use	
The owner of copyright of a book written on author's own is	A
A. Its author B. The publisher of the book C. The person who prints it with consent of the author D. The person who provide the ideas for this book	
What is the intention of the UK government in recognising design right?	D
A. To take technical drawings out of copyright protection B. To take functional articles out of copyright protection C. None of A&B D. Both A&B	
Fair dealing means.....(NHUNG HOÀNG)	b
a. Exception to IP rights infringement b. Exception to copyright infringement c. Exception to trademark infringement d. Exception to patent infringement	

The civil remedies against copyright infringement include a. Final remedies, compensatory damages, criminal sanctions b. Provisional measure, injunction, delivery-up, compensatory damages, punitive damages, account of profits c. Injunction, compensatory damages, border measures d. Account of profits, border measures, final remedies	b
What does a trademark protect?(NHUNG HOÀNG) A. A work of art B. A secret formula C. Logos, names and brands D. General information	C
If a company develops a new technology for producing a special range of clothes, what type of intellectual property right can it use to prevent other from using such technology a. Copyright b. Trademarks c. Registered designs d. Patents	d
Knowing Kevin is a self-employed designer, Charlotte has introduced Kevin to Company X .The Company X then commissioned Kevin for 1500 Euro to design a machine. Who owns the right to the register design of the machine? A. Kevin himself B. Company X C. Charlotte D. Company X and Kevin	B
A company wishes to ensure that no one else can use their logo. Which IPR protects that right?(NHUNG HOÀNG) a. Copyright b. Trademark c. Patent d. Industrial design	b

Anders is the copyright owner of Computer programs. Without Anders' permission, Tine has authorised Charlotte, the one working under contract with Tine, to make an copy of Anders' Computer programs with something added. The act of Tine is:	A
A. A secondary infringement of Anders' Copyrights B. A primary infringement of Anders' Copyrights C. Not a copyright infringement D. Both A&B	
The paternity right is NOT applied to: (NHUNG HOÀNG)	C
A. The creator of a literary, artistic, dramatic or musical copyright work and the director of a film (unless he or she is an employee) B. The designer of a building or other structure C. Computer programs or to any work created by a computer without human intervention D. An individual person and only when there is also a copyright	
You can infringe a patent by..... (NHUNG HOÀNG)	c
a. Making a product for your own personal use b. Publishing drawings of the product on your website c. Selling main components of the product, together with instruction how to assemble it using commonly available fastening components. d. Talking about it	
Is it necessary to prove that those knowing the mark or get-up can identify he owner?	A
A. No B. Yes. It is necessary C. Yes. This is a must to protect the original owner of the trade mark D. Yes. It is important to know who is the first one registering for the trade mark	
What protects the intellectual property created by artist?	b
a. Trademarks b. Copyright c. Patents d. Confidential information	

What protects the intellectual property created by designers? A. Copyright B. Registered designs C. Both copyright and registered designs D. Neither copyright nor registered designs	c
A technical drawing is protected by..... (NHUNG HOÀNG) A. Copyright B. Registered designs C. Both copyright and registered designs D. Patent	C
What can be used to make a copy of a design? A. Only the article itself B. Only the design document of the article C. Either the article itself or its design document D. None of the article and its design document	C
ATM machine is protected... A. Only by design right B. Only by patents C. By both design right and patents D. By trademark	C
The concept of design right was introduced into the UK in: (NHUNG HOÀNG) A. The UK Trade Marks Act 1994 B. The UK Patents Act 1977 C. The UK Copyright, Designs and Patents Act 1988 D. None of the above	C
The word "Steel" can be add in trademark of..... a. Only company producing steel b. Only company not producing steel c. Any company d. All company	c
Suspecting an infringement of his rights, Peter, the owner of a registered design has written to sue a suspected infringer. When can the threatened person sue Peter for making an unjustified threat? A. When there was no infringement B. When there is an infringement C. The person threatened cannot sue Peter in any cases D. Both B&C	A

To be protected by registered design, the owner must.....(NHUNG HOÀNG) A. Prove copying B. Show the designs are the same or very similar C. Publish the design one year earlier D. Show an application of the design	B
Computer icon is protected by(NHUNG HOÀNG) a. Copyright b. Design right c. Trademark d. Registered design	d
If a famous signer sets up her own company to sell her own range of clothes, what type of intellectual property right can she use to show that the clothes are made by her company? a. Copyright b. Trademarks c. Registered designs d. Patents	b
Which of the following is not an intellectual property law?(NHUNG HOÀNG) A. Copyright Act, 1957 B. Trademark Act, 1999 C. Patent Act, 1970 D. Design Act, 2000 E. Customs Act, 1962	E (Which of the following is not a law governing intellectual property perspective?)
A is a movie-star. B takes a photograph of A and sells it to a magazine. A. B infringes on A's copyright B. B infringes A's privacy right C. B does not infringe any IP right D. B infringes A's trademark	B
In Vietnam law, how long the trade mark protection is? A. 5 years B. 10 years C. 15 years D. it depends but can last forever provided that the owner renews its application for protection	D

What can be defined as "fees"? (NHUNG HOÀNG) A. Post-calculated, recurring payments, the amount of which is determined under economic use or result (sales, profits). B. A pre-calculated amount paid once or in installments C. Compensation for services and assistance rendered by technical or professional experts. D. Dividend or income from related operations: commission paid to licensor for his assistance in selling.	D
When is the best time to minimize the risk of being sued for infringement of a registered trade mark, for passing-off or even misuse of someone else's company name? A. a trade mark is selected in the last place. B. a trade mark is selected in the first place. C. a trade mark is newly created D. a trade mark is communicated to the public	B
To protect Registered Design, an owner of Registered design needs to do: A. Show that there has been copying B. Show that the same or a substantially similar design is being applied to a product. C. Prove that the design was not created independently by the infringer D. All of the above	D
According to Madrid Agreement, the single application of trade mark must be made within how many months from the initial trade mark application? A. 6 B. 12 C. 18 D. 3	A
One of the requirements for a mark to be registered as trademark is..... A. not an infringement of other's right B. to be new C. to be creative D. to be original	A

In a dispute on design right,(NHUNG HOÀNG) a. Alleged copyist must prove not copying. b. The owner must prove copying c. The Government must prove copying d. Nobody is in charged of proving copying	b
How do you think about this statement: In the UK, a mark can be used in business course without registration? A. This is correct. In the UK, a mark can be used without registering although it is recommended that registration is always needed for enjoying protection. B. This is not correct. Once being used, a trade mark has already been registered. C. This is not correct. Trade mark must be registered before using in the course of trade D. None of the statements are correct.	A
Anders has created a triangle classes box. The box could have been protected by a registered design but no application was filed. What is the requirement if the box is protected by Design right?(NHUNG HOÀNG) A. Novelty B. Not commonplace C. Individual character D. All of the above	B
When: -The mark could have been registered but the owner decided not to register it, and -The mark is unregistrable because it does not meet the requirements of the law i.e Trade Marks Act 1994). In both cases, use of the mark generates what is known as A. Good hope B. Goodwill C. Good faith D. Good use	B
Which of the followings is secondary infringement of copyright? a. Possession of or dealings with infringing copies b. Performing the work in public c. Duplicating the work d. Selling a work	a

The Fair use of copyrighted work is:(**NHUNG HOÀNG**) B

- A. The permission of copyright owner to others to use freely copyrighted material for certain uses.
- B. The statutory permission granted expressly by the Copyright Act to the public to use copyrighted material for certain uses.
- C. Both A&B
- D. Not A&B

A Uniform Dispute Resolution Procedure (UDRP) is A
agreed by participants, which provide some mechanism to resolve dispute in terms of domain names and intellectual property.

- A. True.
- B. False. UDRP provide mechanism to resolve dispute in terms of domain names only
- C. False. UDRP provide mechanism to resolve dispute in terms of trade mark only
- D. False. UDRP provide mechanism to resolve dispute in terms of the ownership of trade mark only.

A Uniform Dispute Resolution Procedure (UDRP) is A
run by(**NHUNG HOÀNG**)
A. WIPO
B. WTO
C. UN
D. UNCITRAL

What can be deemed as an infringement of registered trade mark?(**073-356-8678**) D

A. Use the registered trade mark in relation to the goods/services specified in the registration;
B. Use the registered trade mark on the similar goods/services;
C. Use the similar mark on the registered or similar goods/services, so that the public is likely to be confused;
D. All are correct;

Secondary copyright infringement is: B

A. Copying the material without permission.
B. Trading of those illegal copies
C. Rewriting the material without permission.
D. Scanning the material without permission.

Which of following is NOT passing-off? (NHUNG HOÀNG) A. Selling used item as a new one B. Copying an existing business name C. Persuading clients of a well-known shop to try other goods or services D. Using similar decoration of an existing business names	C
Regarding applying for registration of a design in the UK, which of the following is RIGHT? A. Applying for registration of a design in the UK is free of charge B. The application can be dealt with by a patent attorney who will be familiar with the formalities required C. An examiner (at the UK Designs Registry) will check whether the design is new. D. All of the above	B
What is sole license? (NHUNG HOÀNG) A. the licensee will have no competition B. the licensor will afford no licenses to other persons within the contractual territory C. A and B are correct D. A and B are incorrect	B
Computer programs can be protected by..... (NHUNG HOÀNG) A. Design rights B. Copyright C. Trademark D. Patent	B
Which of the following statements is true? (NHUNG HOÀNG) a. Fair dealing means that only insubstantial part of a work may be used b. Fair dealing with a work is permitted c. Quoting from a work in criticism or review is permitted provided that the critic or review is fair d. Developing a single part of a work is fair	c

Which of the following actions may constitute an infringement? A. Using the descriptive sign of the goods in accordance with honest practice B. Using a well-known trade mark in the course of a business C. Using the geographical indications of the goods in accordance with honest practice D. Using his own registered trademark	B
In case of copyright infringement, the copyright holder can use a. Only injunction b. Only delivery-up c. Only compensatory damages d. Each of (a), (b), (c) or combination	d
Regarding to Registration period for a registered design. Which of the following is WRONG? A. The initial registration period for a design last for 5 years from the application date. B. The registration can be kept in force for four subsequent periods of 5 years (after the initial registration period), automatically, without fees. C. The registration can be kept in force for four subsequent periods of 5 years, (after the initial registration period), if renewal fees are paid D. The registration period for a design last for 5 years only from the application date. After that period, the registration will not be extended if the owner does not pay the renewal fees	B
A technical drawing is prepared for use in manufacturing a television set, the drawing is protected by:(NHUNG HOÀNG) A. Design right B. Copyright C. Registered design D. Both of B&C	D
Which is NOT right about "Copying in a different medium"? A. a photocopy of a book. B. a scanned-in digital copy of a photograph C. a reproduction and the copy have a material form D. a translation a copyright work	D

Primary copyright infringement is: (NHUNG HOÀNG)	B
A. Trading of those illegal copies B. Copying the material without permission. C. Rewriting the material with permission. D. Both of A&C	
If the technical drawings of motorbike are copied, there is infringement of:	D
A. Registered design B. Design right C. Copyright. D. Both of A&B	
A false attribution as an author..... (NHUNG HOÀNG)	a
a. Is made if a reasonable reader of the work would think that claimant was the author b. Is made where particular words are attributed to the claimant without consent c. Is made if the name of author is not mentioned d. Is made if the work is re-written	
Which of the following is NOT a copyright infringement?	B
A. Someone copies without the copyright owner's permission B. A photographer takes a photograph of a particular scenic view, even though the photograph is virtually indistinguishable to another person's photograph. C. Someone creates a scene in a studio to reproduce a scene in someone else's photograph D. One similarity drawing has had access to the material which has supposedly been copied	
Referring to a trade mark in news is.....	C
A. A primary infringement of trade mark B. A secondary infringement of trade mark C. Not an infringement of trade mark D. An infringement of copyright	
For the purpose of showing damage in a passing-off action, the owner must.....	b
a. Show actual loss b. Demonstrate high risk of loss of business arising from the confusion c. Calculate the number of clients before and after passing off occurs d. Proving the activity of imitation	

A wooden chair is protected by registered design. After seeing this chair, a chocolate shop makes a chocolate bar with the design of this chair. Such act is..... a. A secondary infringement of registered design b. A primary infringement of registered design c. Not an infringement of registered design d. An infringement of patent	b
Who is not an author of the artistic work?(NHUNG HOÀNG) a. A person who solely creates the artistic work b. A person who fixes the picture on whatever medium. c. A person who jointly provide significant contribution to create a copyrightable artistic work. d. A person who merely provides ideas.	d
A writer has written a detective novel based on using a murder case's transcripts from court proceedings without the Court's consent. The Court is the publisher of the transcripts. Which of the following is RIGHT? A. The transcripts from court proceedings are protected by Copyright. B. The writer has to compensate for the Court's copyright C. Transcripts from court proceedings are in the public domain D. The writer has infringed the Court's Copyright	C
The article made by Company X does not exactly the same with the article owned by Company Y but this article is only slightly different from Y's article. Which of the following is RIGHT?(NHUNG HOÀNG) A. The article made by X is already different slightly from Y's article. It is not an infringement of design right. B. It is an infringement of design right. Y, as the owner, will prevent X from copying the design. C. X does not have to obtain Y's permission before making the article D. X does not have to compensate for Y's design right.	B
Liability for infringement of copyright can be avoided if...(073-356-8678) A. It is taken negligently B. It is taken intentionally C. It is used for commercial purpose D. It is used for educational purpose	D

In the EU, marks registered by the Office for Harmonisation of the Internal Market (Trade Marks and Designs) and are called A. Community Trade Marks B. Global Trade Marks C. European Trade Marks D. All are correct	A
Which one of the followings is NOT correct according to UK law? A. Injunction and delivery-up can be applied even in case the plaintiff suffers no damage. B. Courts may apply provisional measures where any delay is likely to cause irreparable harm to the right holder. C. Provisional measures are applicable if there is a demonstrable risk of evidence being destroyed. D. The combination of injunction and delivery-up is not available if there is no damage incurred to the plaintiff.	D
A trade mark being an invented word must..... A. Be new B. Be distinctive C. Indicate the nature of the goods D. Be meaningful	B
What is the best definition about "passing-off"? A. The use of identical or similar marks or get-ups to cause confusion in the public by relying on the reputation of a mark or get-up, which has already been used long enough. B. The use of different mark by relying on the reputation of a mark or get-up, which has been used long enough. However, this use is not caused any confusion. C. The use of distinctive marks or get-ups to cause confusion in the public D. A trade mark infringement	A
What is not relevant purpose for applying fair dealing(NHUNG HOÀNG) A. Commercial purpose B. Educational purpose C. News reporting D. Reviewing purpose	A

Which is considered as copying by adaption?	A
A. Adapting a copyright work, which includes translating it. B. Copying one line of a well-known song in a nontechnical context C. The extraction or reutilization of a computer-stored database, whether the whole or a substantial part D. A photocopy of a book, or a scanned-in digital copy of a photograph	
Which is/are exceptions to copyright infringement?	D
A. Public events B. Time shifting C. Education D. All of others are correct	
Are domain names intellectual property? (NHUNG HOÀNG)	A
A. Not really. B. Yes, they are. C. Yes, provided that domain names are registered with the Internet service providers D. Yes, since domain names provides the exact information of the owner of goods or services on the Internet	
Design right applies to:	B
A. Drawings produced in an industrial context B. Tangible three-dimensional Articles C. Artistic drawings D. Textbook on Design rights	
Design right applies when.....	a
a. The design is recorded b. The design is registered c. The design is published d. The design is showed	
A mechanical device is NOT protected by which IPR? (NHUNG HOÀNG)	A
A. Copyright B. Design right C. Patent D. Registered design	

Which of the followings is an infringement of copyright? C

- A. Reading a book without consent of the author
- B. Listening to a song without consent of the author
- C. Translating an article without consent of the author
- D. Researching a paper without consent of the author

Which of these statements is true about the general nature of passing off? C

- A. The defendant must intend to cause loss
- B. The misrepresentation must be intentional
- C. There must be a false representation
- D. There must be actual damages

Dennis has successfully registered his design (after 9 December 2001). After that, Mike, who with a similar design, applies to have the Dennis's registration invalidated on the grounds that the design was not new.

Which of the following is RIGHT?***(NHUNG HOÀNG)***

- A. Mike can do that only when Dennis design has not been registered
- B. Mike can do that even after Dennis design has been successful registered
- C. Mike cannot do that after Dennis design has been successful registered
- D. Mike can do that after Dennis' design has been successful registered if Dennis design did not have individual character and was not new.

Which of followings is correct? C

- A. Passing off is an infringement of only unregistered trademark
- B. Passing off is an infringement of only registered trademark
- C. Passing off is an infringement of both unregistered and registered trademark
- D. Passing off is an infringement of neither unregistered nor registered trademark

To be protected by registered design, an article must ...***(NHUNG HOÀNG)*** A

- A. Have an individual character
- B. Be original
- C. Be non- commonplace
- D. Be new

Which is an exception to copyright infringement? (NHUNG HOÀNG) A. Research or private study B. If a technical paper is published in a periodical with an abstract, then copying the abstract is permitted, unless there is a licensing scheme in force C. Education D. All of others are correct	D
The protection of copyright excludes(NHUNG HOÀNG) A. A single word B. Songs C. A list of names and addresses in a telephone directory D. Computer programs	A
The "Commonplace", which is the requirement for protection of design right, means: A. The similarities of the design in question when compared objectively to other designs B. "Not original" in the design field in question. C. None of A&B D. Both of A&B	D
Which is the principle of "independence of protection" stipulated in Bern Convention? a. Works originating in one of the Contracting States must be given the same protection in each of the other Contracting States as the latter grants to the works of its own nationals b. Protection must not be conditional upon compliance with any formality c. Protection is independent of the existence of protection in the country of origin of the work d. As to works, protection must include "every production in the literary, scientific and artistic domain, whatever the mode or form of its expression"	c
Which of the following form of a spoken word is NOT protected by copyright? A. A fully prepared text B. A note C. In shorthand, or on tape or disk D. None of the answer is correct	B

Pictorial design or logo is protected by which IPRs? A. Copyright, registered design, trademark B. Topography right, trademark, design right C. Registered design, confidential information, copyright D. Topography right, confidential information, copyright	A
What does indirect compensation include?(NHUNG HOÀNG) A. post-calculated, recurring payments, the amount of which is determined under economic (sales, profits). B. a pre-calculated amount paid once or in installments C. compensation for services and assistance rendered by technical or professional experts. D. dividend or income from related operations: commission paid to licensor for his assistanc	C
The remedies available for the trademark infringement are to those applicable for copyright A. the same B. more favorable C. less favorable D. completely different	A
Which is the principle of "national treatment" stipulated in Bern Convention? A. Works originating in one of the Contracting States must be given the same protection in each of the other Contracting States as the latter grants to the works of its own nationals B. Protection must not be conditional upon compliance with any formality C. Protection is independent of the existence of protection in the country of origin of the work D. As to works, protection must include "every production in the literary, scientific and artistic domain, whatever the mode or form of its expression"	A

Philips has taken a photograph of a particular scenic view. John knew about that photograp.... still independently took a photograph with the same view, same perspectives. John's photograph... similar to the Philips'one. The two photographs are virtually indistinguishable. A. John had to ask Philips for consent before taking his photograph. B. Philips can request John for a copyright compensation. C. John made a copy of Philips' photograph and it is a copyright infringement. D. It is not copying and not copyright infringement for John	D
How long is the duration of computer-generated right according to the UK law?(NHUNG HOÀNG) A. Lasts for the life of its creator plus a further 50 years. B. Lasts for 70 years begins to run on the death of the last surviving creator if two or more.... jointly involved in the work C. The copyright lasts for 50 years from the end of the year in which the copyright material D. Lasts for 15 years from the end of the year the database was created or made accessible	C
Which of the followings is not secondary infringement of copyrights? A. A copy is distributed either internally within a business or outside the company B. A single copy of a computer program bought abroad, and brought it home for using in connection with professional engineering work. C. Photocopying of a book D. Showing a TV broadcast, cable programme, film or playing music to the public	B
How long is the duration of database right according to the UK law? A. Lasts for the life of its creator plus a further 70 years. B. Lasts for 70 years begins to run on the death of the last surviving creator if two or more....jointly involved in the work C. For the works generated before 1 January 1996 the duration of database right is life plus....50 years. D. Lasts for 15 years from the end of the year the database was created or made accessible	D

Company M subcontracts Company H to copy and make a product which owned by Company N with a clear instruction to manufacture the copy. Company H knows the product is owned by Company N. Which of the following is RIGHT? A. M has transferred the legal burden to H on the infringement of Design right. B. His not responsible for the infringement C. M is not responsible for the infringement as it is not the one directly copied and made the product. D. Both H & M infringed N's Design right.	D
What are criteria for winning a transfer of a domain name? A. A domain name must be identical or confusingly similar to a registered or unregistered trade mark, the use complained of must be by someone having no legitimate interest in the name, and bad faith B. When there is innocently confusing use, an offer to sell the mark or a history of registering names based on third party trade marks. C. All are correct D. None of the answers are correct	A
Acme Corporation attempted to register a trade mark that was generic and not fanciful, arbitrary, suggestive or descriptive with a secondary meaning. Under these circumstances, Acme has(NHUNG HOÀNG) A. an excellent case for the registration of a trade mark because generic trade marks, as opposed to fanciful, arbitrary or suggestive trade marks, are capable of being copyrighted. B. an excellent case for the registration of a trade mark because all trade marks are capable of being copyrighted. C. no case for registration of the trade mark because a trade mark must be fanciful, arbitrary or suggestive to be capable of being copyrighted. D. no case for registration of the trade mark because a trade mark must be independent, rather than fanciful, arbitrary or suggestive, to be capable of being copyrighted.	C

Which of the followings is not correct	b
a. The applicant must list goods/services for which the trademarks to be used	
b. The trademark which is registered in UK is automatically protected in Vietnam	
c. Under Nice Agreement, goods are divided into 34 classes	
d. The registration must be renewed by paying fee	
Simplifying a written story without consent of author is..... (NHUNG HOÀNG)	a
a. Infringement of copyright	
b. Plagiarism	
c. Passing off	
d. False attribution	
Which of the following is a generic term?	A
A. "car" for cars	
B. "Apple" for computers	
C. "Camel" for cigarettes	
D. "Kodak" for cameras	
Get-up includes	d
a. the colour of packaging and the type of lettering used on a label	
b. a slogan used for broadcast or printed advertising	
c. visual impression of business premises, such as the style of fascia board and the colour of shop fittings	
d. All are correct	
After a sufficient use, a mark which is unregistrable may become registrable because	a
a. Its reputation can be used as proof that the mark has become distinctive for the goods or service for which it has been used.	
b. This can not be happened. The mark should be registered through an official process as stated by the laws.	
c. The mark is automatically registered	
d. None of the answer is correct	
A registered trade mark of one goods.....	c
a. Can not be registered as trade mark of other goods in different classes	
b. Can not be registered as trade mark of services	
c. Can not be registered as trademark of other goods in the same class	
d. Can not be registered as trade mark of any service and goods	

In which case you are the creator of an Intellectual Property? A. You employed someone creating the intellectual property. B. You created the intellectual property by yourself. C. You bought the intellectual property rights from the previous owner of the property. D. You are donated the intellectual property rights from the previous owner of the property.	B
According to Vietnam law, duration of economics right in literature work: a. Lasts for 50 years from the year the film or record was made or, if it is released to the public, 50 years from its release b. Lasts for the life of its creator plus a further 50 years. c. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work d. Lasts for 75 years from the end of the year in which the film was created	b
According to TRIPS, is registration of sounds or smells is allowed by countries? (NHUNG HOÀNG) A. Yes. Provided that these are distinctive B. No. Only invented words permitted C. No. Only signs are permitted D. No. Since sounds or smells are not distinctive.	A
What does three stripes on Adidas clothing represent?(NHUNG HOÀNG) A. A trade mark. B. Trade dress. C. A trade secret. D. A patent.	A (The three stripes on Adidas clothing represent)
A design of a television set being intended for manufacture is new and has an individual character. The design is also not commonplace. What IPRs can simultaneously protect the design?(NHUNG HOÀNG) A. Trademarks; and Copyright. B. Registered Design; and Design Right. C. Copyright; and Registered Design. D. Copyright; Trademarks; and Registered Design.	C

Which of the IP Laws below currently having legal validity in Viet Nam? A. The Intellectual Property Law No. 50/2005/QH11 B. The Intellectual Property Law No. 50/2005/QH11 having been amended and supplemented in accordance with the Law No. 36/2009/QH12; the Law No. 42/2019/QH14; and the Law No. 07/2022/QH15 C. The Intellectual Property Law No. 50/2005/QH11 having been amended and supplemented in accordance with the Law No. 36/2009/QH12 and the Law No. 42/2019/QH14. D. All of the above	B
A hybrid car is intended for manufacture and the design is new and not commonplace, has an individual character.(NHUNG HOÀNG) Which of the followings is WRONG? A. The car can be protected by a registered design. B. The car can be protected by a design right. C. The car cannot be protected by a registered right. D. Both A&B	C
Which IPR will protect an electrical device? A. Copyright B. Confidential information C. Trademark D. Design right	D
Which of the following is NOT a copyright infringement according to the UK law?(NHUNG HOÀNG) A. Copying in a different medium to the original work, such as a photocopy of a book, or a scanned-in digital copy of a photograph B. Making a short-term or transient copy C. Speaking words aloud without making a copy whether by shorthand or on tape D. Making an object in three dimensions from a drawing of that object	C (Which of the following is NOT an infringement in coyright according to UK law?)
Which of the following is RIGHT? A. As a copyright holder, you are compensated for fair use of your copyrighted work by others. B. A teacher has copied a book for purpose of teaching. The teacher has to compensate for the book's copyright holder for the use. C. A university professor has copied a book for purpose of his research. This is not an infringement of copyright. D. If material is protected by copyright, in any cases, no anyone can use the material without copyright holder's permission.	C

A design for a car body is registered. Can the same design be used for: A. A toy car B. A chocolate bar C. A print on a tea towel D. Not any of A,B&C	D
To be protected by copyright, a creative work must be..... a. Fixed in a tangible medium b. original c. both original and fixed in a tangible medium d. Spoken	c
In most types of work, how long does copyright last for according to Bern Convention? A. 10 years after the creation of the work B. 50 years after the creation of the work C. 10 years after the death of the person who created that work D. 50 years after the death of the person who created that work	D
In a case on Design rights dispute, if the design right owner succeeds in proving the infringement, what cannot the Court award?(NHUNG HOÀNG) A. An injunction to stop further manufacture or import B. An arrest warrant for the infringer C. Order payment of damages (e.g. for loss of sales by the design right owner) D. The destruction of the offending articles produced during the previous 6 years or handing them over to the design right owner	B
This IP right is associated with every literary, dramatic, musical or artistic work, to sound recordings, films, broadcasts and cable programs. This right is: a. Copyright b. Design right c. Registered design d. Confidential information	a

Confusion can be caused by a competitor using the most memorable part of the trade mark. (NHUNG HOÀNG)	a
a. Yes. The use of the most memorable part will be sufficient to generate the confusion. b. No. The confusion happens when the competitor uses an identical or very similar trade mark or get-up. c. No. The confusion happens only in the case of using identical marks for identical goods or services d. None of the abovementioned statement is correct	
Company H designs a new type of fuse holder. Company M has copied freely the parts of the holder that actually contact the fuse. Which of the following is RIGHT? (NHUNG HOÀNG)	A
A. Company M infringed Company H's Design right. B. Company M have to obtain Company H's permission before coping the parts C. Company M can copy and produced the parts without Company H's permission D. Company H can request Company M for a Design right compensation.	
Which of the followings is not a category of copyright?	c
a. Literary works b. Sculpture c. Furniture d. Computer programs	
Which of the followings is NOT a requirement for passing off?	b
a. Confusion b. Within geographical area c. Damages d. Providing similar product	
Which of the followings is not a public domain material?	C
A. Works expired copyrights B. Works published by the United States government C. A novel protected by Copyright D. News and history	
What does Trade libel means?	A
A. Misleading advertisements and false indications of the origin of goods and services B. The original information about the quality of products or services C. An injunction against counterfeit D. A piece of information identified the products or services on mass communication	

What is the "public interest" principle with regard to IP protection? C

- A. It means that the protection and exercise of IP rights must be for the interests of the general public.
- B. It means that the protection and exercise of IP rights must be for the profits of public corporations having important role for national economic development.
- C. It means that the protection and exercise of IP rights must be balanced with the public interest, and that a balance must be maintained between the interests of right holders and the general public.
- D. It means that the protection and exercise of IP rights must be for the interests of IP right holders.

To be granted a provisional measure order, the applicant must d

- a. Provide any reasonable evidence to prove that he/she is the right holder of copyright
- b. Provide any reasonable evidence to prove that his/her rights are being infringed or that such infringement is imminent.
- c. Provide security
- d. All of others are correct

Know-how contract can be existed under a form of relevant transaction such as joint-venture.(**NHUNG HOÀNG**) A

- A. True. Know-how contract can be existed under a form of relevant transaction such as joint-venture besides other forms.
- B. False. Know-how contract can be existed only under a form of apprenticeship.
- C. False. Know-how contract can be existed only under a form of franchising.
- D. False. Know-how contract can be existed only under a form of supporting agreement.

The registration of a Community Trade Mark can be renewed every years. D

- A. CTM cannot be renewed
- B. 5 years, for 4 consecutive times after the first registration
- C. 5 years
- D. 10 years

According to current Vietnam Intellectual Property Law, Intellectual Property Rights includes: (NHUNG HOÀNG)	B
A. Literatural works; Designs; Trademark.	
B. Copyright and rights related to copyright; Industrial property rights; Rights to plant varieties.	
C. Rights to tangible property	
D. Both of A&B	
Copyright is NOT applied to	d
a. Songs	
b. Video tapes	
c. Broadcasts	
d. None of them	
What is the definition of a domain name?	c
A. A domain name is an anonymous string that defines a realm of administrative autonomy, authority or control within the Internet.	
B. A domain name is an identification string that defines a realm of administrative autonomy, authority or control within a geographic area.	
C. A domain name is an identification string that defines a realm of administrative autonomy, authority or control within the Internet.	
D. A domain name is an identification string that defines a person, authority or control within the Internet.	
What is the below document not the sources of IP Law in Viet Nam?	C
A. Constitution 2013	
B. Law on Intellectual Property No. 50/2005/QH11 having been amended and supplemented with the Law No. 36/2009/QH12; the Law No. 42/2019/QH14; and the Law No. 07/2022/QH11	
C. Official Letter No. 71/BKHCHN-SHTT dated January 10, 2024 of the Ministry of Science and regarding the report on the implementation situation in 2023 of the IP Strategy to 2030	
D. Decree No. 65/2023/ND-CP Detailing some articles and measures to implement Law on Property 2005	

The use of one registered trademark without the owner's permission A. Is an infringement of this registered trademark in all case B. Is never an infringement of this registered trademark C. Is an infringement of another registered trademark D. Is an infringement of this registered trademark in some circumstances	d
Andy translates a book into Vietnamese with consent of the author. However, in this translated version, Andy re-arranges different parts of the book. Andy might commit infringement of....(NHUNG HOÀNG) a. Translation right b. Reproduction right c. Integrity right d. False attribution	c
'Apple' for computers is an example of a. Invented words used as a trade mark b. Words used out of context as a trade mark c. Symbols used as a trade mark d. Shapes used as a trade mark	b
Which of the following is NOT true? a. Your friend gives you a copy of a drawing and you have reason to know that that copy has been taken without the copyright owner's consent. You bring this copy to UK. In this case, you commit secondary infringement of copyright b. You import copies of cartoons into UK for your professional purpose and you have reason to know that those copies have been taken without copyright owner's permission. In this case, you commit secondary infringement of copyright c. You import copies of cartoons into UK for your private collection and have reason to know that those copies have been taken without copyright owner's permission. In this case, you do not commit secondary infringement of copyright d. You import copies of cartoons into UK for your private collection but you have no reason to believe that those copies have been taken without copyright owner's permission. In this case, you do not	a

When a design is created by a computer without human intervention, i.e. not using of a company design program with a human being in control of the process. In this circumstance, who is the Registered design according to the UK law? (NHUNG HOÀNG)	B
A. The computer itself B. The company owning the computer in which the program is run C. The company's employee who is assigned using the computer D. No designer in this case	
When a logo of a product can be protected by both Copyright and Trademarks?	D
A. The logo is a art work B. The logo is used to identify and distinguish the product C. The logo is a design of an article D. All of the above	
Which of the following is RIGHT? (NHUNG HOÀNG)	C
A. A disadvantage of the design right is that the owner must not prove copying. B. An advantage of registered design is that the owner shows the infringed designs are the s similar is enough. C. None of A&B D. Both of A&B	
What is the lump-sum payment? (NHUNG HOÀNG)	B
A. post-calculated, recurring payments, the amount of which is determined under economic use or result (sales, profits). B. a pre-calculated amount paid once or in installments C. compensation for services and assistance rendered by technical or professional experts. D. dividend or income from related operations: commission paid to licensor for his assistance in selling.	(Lump-sum payment is)
Intellectual Property Rights are:	C
A. Only the rights that creators have over their literary and artistic works. B. Only the exclusive right given to creators over the use of his/her invention (of their minds) C. The rights given to creators an exclusive right over the use of his/her creation (of their minds) period of time. D. Copyrights and Trademarks.	

What is NOT "get-up" of a well-known bakery shop? (NHUNG HOÀNG) a. Client b. Packaging c. Decoration style d. Name	a
A machine with artificial intelligence created a 3D sculpture. The owner of design right of this sculpture is.....(NHUNG HOÀNG) a. This machine b. The person by whom the arrangements necessary for the creation of the design are undertaken c. Nobody d. Public	b
Moral rights include: a. Integrity right, reproduction right and false attribution right b. Economic right, public performance right c. Paternity right, integrity right, also attribution right and privacy right d. Paternity right, distribution right and privacy right	c
Which one of the followings is correct? a. Under Berne Convention, authors shall not reserve moral rights upon they transfer their works to other persons. b. Under Berne Convention, authors shall reserve the right to claim authorship of their work but not the right to object any changes to their work upon they transfer their work. c. Under Berne Convention, authors are not allowed to accept any changes to his original works upon they transfer such works to other persons. d. Under Berne Convention, authors shall reserve moral rights upon they transfer their work to other persons.	d
Before disclosing your graphic work which you have just created to any person, you (NHUNG HOÀNG) a. (i) make an agreement with him/her thereby he/she promises not to disclose or misuse the graphic work without your permission b. (ii) make sure you are not in infringement of any third person's IPRs if disclosing the graphic work c. Neither (i) nor (ii) d. Both (i) and (ii)	d

In the UK, it is a ____ offence to apply a mark identical to (or likely to be mistaken for) a registered trade mark to goods, labels, packaging or advertising materials intended for use in relation to goods without the proprietor's permission. A. Civil B. Moral C. Criminal D. Ethical	C
"Checking whether the design is new" in applying process for design registration in the UK. Which of the following is RIGHT?(NHUNG HOÀNG) A. An examiner of the UK Designs Registry will check whether the design is new when recent application. B. The Registry will search existing registrations for a fee, if the applicant wants to check what is new C. The Registry will search existing registrations, free of charge, if the applicant wants to choose design is new D. "Checking whether the design is new can be done only when the application is filed.	B
The requirement of proof of reputation is applied for the protection of..... a. Registered trade mark b. Unregistered trade mark c. Both registered and unregistered trade mark d. Any trademark	b
A designer is an employee of a publisher. Then, copyright of all his artistic works under employment contract is owned by.....(NHUNG HOÀNG) a. This publisher b. This designer c. Both publisher and designer d. Neither publisher nor designer	a
In case "Apple" is registered as trade mark of Apple Inc., the trade mark "Apple"(NHUNG HOÀNG) a. Can not be used by a company producing computer and phone b. Can not be printed in a T-shirt c. Can not be used by a company selling apple d. Can not be used by any company	a

What is the International Treaty that applies to industrial property in the widest sense, including trademarks, industrial designs, utility models, service marks, trade names, geographical indication repression of unfair competition? A. Madrid Agreement, concluded in 1891, for the International Registration of Trademarks B. Berne Convention 1886 for the Protection of Literary and Artistic Works. C. Paris Convention 1883 for the Protection of Industrial Property. D. Hague Agreement 1925 concerning the International Registration of Industrial Designs.	C
If a mark or get-up has been used long enough to have generated a reputation, the owner can stop a competitor from __ goods or services as if they originated with the owner by use of identical or similar marks or get-ups. A. Passing off B. Licensing C. Contracting D. Purchasing	A
Trade mark includes.....(NHUNG HOÀNG) a. Only registered trade mark b. Only unregistered trade mark c. Both registered and unregistered trademark d. Neither registered nor unregistered trademark	c
Copyright is protected a. Everywhere in the world b. By being registered c. When the works in question is created d. Only in the country where it is registered	c
According to Vietnam law, duration of moral right in literature work: a. Lasts for 50 years from the year it is released to the public b. Lasts for the life of its creator plus a further 50 years. c. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work d. Lasts forever	b

A singer wishes to assign the right to reproduce a video she made about her concert. Which right does the singer have?(NHUNG HOÀNG) A. Copyright B. Trademark C. Patent D. Industrial designs	A
What does copyright protection in sound recordings cover? A. Only recordings of music B. Any type of sound recording, including spoken words and noises C. Only digital recordings D. Only films and broadcasts	B
The photographer owns the copyright but the person paying for the photograph to be taken can stop it being used for other purposes, which is referred to as _____ A. Integrity right B. Paternity right C. False attribution right D. Privacy right	D
Does copyright apply to live broadcasts?(NHUNG HOÀNG) A. No, only recorded broadcasts are covered B. Yes, copyright applies to both live and recorded broadcasts C. Only if the broadcast is international D. Only if the broadcast is on television	b
Who holds the copyright in the individual works, such as songs or plays, included in a sound recording or broadcast? A. The original creators of those works B. The producer of the sound recording or broadcast C. The broadcasting company D. The director of the film or broadcast	A
In order to determine whether a company commits passing off, the determinative factor is whether(NHUNG HOÀNG) A. Products are similar B. The buyer is misrepresented which leads the buyer to believe that the products were produced by the true owner C. Products are sold within one geographic area D. There are marketing activity using such trademark	B

What are the basic requirements that trade mark should be? A. Easy to remember and sufficiently different from marks used by competitors B. Easy to remember and creating confusion C. Distinctive and confusion D. All are correct	A
What challenge does the overlap between copyright and design right present in the engineering context? (NHUNG HOÀNG) A. Uncertainty in whether certain structures, like a microwave tower, are considered articles or buildings B. Confusion over which law to apply C. The inability to protect engineering designs D. Conflicts between design and patent law	A
What criminal liability that a copyright infringer may face according to the UK law? A. 10 years imprisonment B. Unlimited fine C. Both A and B D. Neither A or B	C
Design right applies for___ A. the shape or configuration of an article B. a method or principle of construction C. None of the options D. surface decoration	A
What is a potential area of overlap between copyright and industrial design protection? A. Copyright may protect a design as an artistic work, while industrial design may protect the same design as a three-dimensional article. B. Copyright protects functional aspects; and industrial design protects artistic ideas. C. Industrial design exclusively protects digital designs. D. Both protect only two-dimensional designs.	A
Unregisterable marks include___ A. 'purely' descriptive signs which indicate the nature of the product B. an invented word which is distinctive and not indicative of the nature of the products C. English words used out of context D. All of the options	A

What happens if a consultant or Company B creates copyrighted material under a contract, but the contract does not specify ownership? A. The consultant or Company B owns the copyright, but may have limited control over its use B. The copyright is automatically assigned to Company A C. The consultant cannot use the material without permission from Company A D. The copyright remains with the consultant, with full control	D
Company X pays Company Y for one copy of a program such as a word processing or accountancy package for a PC (Company Y is the owner of the program). Company X then makes copies for every PC in the company without the permission of the Company Y. Which of the following option is wrong? (NHUNG HOÀNG) A. Company Y can sue Company X for the Copyright Infringement. B. Company X can make copies of the program for every PC in the company for internal use only within the company as it has paid for the program already. C. Company X does not have the right to make copies for every PC in the company, unless the accompanying license gives this permission. D. Both of a&c	B
What is the purpose of "right of communication to the public"? A. To control how the work is transmitted to the public, especially electronically B. To allow free sharing of the work C. To enable the sale of physical copies D. To ensure the work is only available in its original form	A
Is it compulsory to register a trademark? A. Yes. This is a legal requirement. B. No. Trade marks need not be registered C. No. Because the protection of trade mark is automatic D. All are not correct.	B

What are the sources for IP law in the UK?	D
A. International law B. Domestic (UK) law C. Precedents (Case Law) D. All of them	
Which of the following is correct?	D
A. A registrable mark can infringe a third person's rights. B. A mark must indicate the type, quality, purpose or geographical origin of the products to be registrable. C. A registrable mark can be contrary to morality. D. A mark must be distinctive to be registrable.	
What is a "public performance" in terms of copyright? (NHUNG HOÀNG)	A
A. Any performance of a work in a public space B. A private showing of a work C. A limited distribution of a work D. A performance by a professional artist only	
What is the damage?	A
A. A sum of money paid by the infringer to the IP owner via a court's decision B. A criminal liability C. The profit that infringer received through their infringements D. An amount that the IP owner will receive from the court	
What is an IPRs (Intellectual Property Rights) assignment?	D
A. Both of b & c. B. A legal/ administration action of an authorized State agency to grant IPRs to an individual and/or organization on the IP that they created or owned. C. A legal agreement in which the owner of an intellectual property (IP) grants permission to another party (other parties) to use that IP under defined conditions. D. A legal agreement on transferring of ownership of IP from the assignor to the assignee.	
What type(s) of IPR license can be? (NHUNG HOÀNG)	B
A. Only an exclusive license. B. Can be either an exclusive; sole or non-exclusive license. C. Only a sole license. D. Only a non-exclusive license.	

What is the social justification for the protection of intellectual property? A. To create economic inequality B. To provide creators with a monopoly C. To encourage the dissemination of knowledge D. To limit access to technology	C
What are the exclusions from design registration? A. A feature of a product is dictated by its function; B. A feature which allows a product to fit to another product. C. A and B are correct D. A and B are not correct	C
The right for the creator of a literary, artistic, dramatic or musical copyright work to be named as author in certain circumstances is (NHUNG HOÀNG) A. the right of integrity B. the right of privacy C. the right of false attribution D. the right of paternity	D
Which convention primarily deals with the protection of industrial property such as patents and trademarks? A. Berne Convention B. Paris Convention C. Rome Convention D. Geneva Convention	B
Smith, who is a freelance, creates copyright material as hired and assigned by Peter Company, copyright is owned by A. Peter Company B. Smith C. Smith's colleagues D. Peter Company's board of directors	A
Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) is an international agreement that ... for all World Trade Organization members. A. Sets maximum standards for protection of intellectual property B. Sets minimum standards for intellectual property protection C. Regulates average standards for protection of intellectual property D. Sets basic limitations for intellectual property protection	B

Which is litigation model applied in the countries used the civil law system? A. Adversarial litigation B. Inquisitorial litigation C. Civil procedure D. Court procedure	B
Computer program can be simultaneously protected by: (NHUNG HOÀNG) A. Trade Mark and Registered Design B. Copyright, Patent and Confidential Information C. Design Right, Trade Mark and Copyright D. Trade secret and Trade Mark	B
Which of the following requires permission under copyright law? A. Playing a song in a public venue B. Listening to music at home C. Sharing a book with a friend D. Writing a review of a movie	A
What is primary infringement of design right? A. Copying a design and making an article that is exactly the same or only slightly different. B. Selling a product that looks similar to a protected design. C. Importing a product without permission. D. Hiring out an article that is identical to another.	A
How to identify the infringement of the registered design? A. Using visual test B. Asking friends D. Using fair dealing test C. Just refer to the court or authority and wait for their opinions	A
According to the UK's law, copyright for a novel, which is written by a novelist, in 2011, lasts for ____ A. The novelist's life plus 70 years B. The novelist's life plus 50 years C. 20 years D. The novelist's life	A (Kiểu hỏi khác: According to Vietnamese law, copyright for a poem, which is written by Smith, lasts for A. The novelist's life plus 70 years B. The novelist's life plus 50 years C. 20 years D. Smith's life)

Which of the following is incorrect?	A
A. Nonfiction information is copyrightable. B. The author's intention when making a literary work is irrelevant to its copyrightability. C. Short phrases are generally not protected by copyright. D. None of the options	
Regarding an exclusive license and a non-exclusive license, which of the following is right? <i>(NHUNG HOÀNG)</i>	A
A. The exclusive license: the IP owner promises not to compete with the licensee and not to grant other licenses in the same field. B. The non-exclusive license transfers ownership of the IP to the licensee. C. The exclusive license does not prevent the licensor from using the IP. D. The non-exclusive license does not allow multiple licensees to use the IP.	
Who traditionally owns the copyright in a sound recording? <i>(NHUNG HOÀNG)</i>	C
A. The composer of the music B. The person who performs the music C. The person making the arrangements necessary for the recording to be made, typically the producer D. The recording studio	
What does copyright in software include?	A
A. Protection of the code and related documentation B. Only the visual design C. Only the underlying ideas D. Only the user interface	
What entity typically owns the copyright in a broadcast?	C
A. The director of the broadcast B. The actors in the broadcast C. The broadcasting company that makes the broadcast D. The viewers of the broadcast	
Which IPR does not protect a technical report or specification?	D
A. Copyright B. Patent C. Confidential information D. Design right	

Which of the following is not a moral right in Vietnamese IP law?	A
A. Right to make copies B. Right to attribution C. None of the options D. Right to publish the work	
What must an idea have to be protected by copyright? (NHUNG HOÀNG)	B
A. Be original and registered B. Be expressed in a tangible form C. Be reviewed by an authority D. Be published	
What happens to copyright protection when minor bug-fixing changes are made to a computer program?	B
A. The program loses its copyright protection B. The former copyright still applies C. A new copyright must be filed D. The changes are not protected by copyright	
Assuming that an article is not common place, if this article could have been protected by a registered design but no application was filed, what is the potential result?	A
A. It will be protected by design right. B. It will be protected by trademark C. It will be protected by copyright D. All are not correct	
A trade mark can be any of the following except a	C
A. Word B. Symbol C. Formula D. Phrase	
The term "Apple" can NOT be a trade mark of.....	B
A. Any business B. Any business selling apples C. Any business selling smartphones D. Any business selling computers	

The standard that must be met for a plaintiff to win a trade mark dilution claim is the likelihood of confusion. A. Yes. Likelihood of confusion is the key indicator to identify a trade mark infringement. B. No. Since dilution is a form of damage in passing off, the plaintiff must show there is a reputation in the mark or get-up; there has been confusion in the marketplace, and the owner has suffered damage to win the claim. C. No. The damage is the fundamental indicator in a dilution claim, that the plaintiff must prove to win the case. D. There are no correct answers	C
Registration of a trade mark is (NHUNG HOÀNG) A. automatic B. subject to an approval process through the designated authoritative body C. dependent upon a corporation using a priori means to establish an original mark. D. dependent upon whether the mark has been established as being diluted	B
Distinguishing those products from the products of competitors and being capable of indicating goods or services originating from a particular source are element of trade mark. A. Comparative B. Original C. Distinctive D. Memorable	C
A Community Trade Marks (CTM) is valid in _ A. All member countries of the WTO B. All member countries of the EU C. All member countries of the WIPO D. All member countries of the UN	B

According to TRIPS, a registered mark can give the owner....	C
A. Exclusive right to prevent use by a third party in the course of trade of an identical or similar sign for identical or similar goods B. Exclusive right to prevent use by a third party in the course of trade of an identical or similar sign for identical or similar services C. Exclusive right to prevent use by a third party in the course of trade of an identical or similar sign for identical or similar goods and services D. Exclusive right to prevent use by a third party in the course of trade of an identical or similar sign for different goods	
If the design is NOT put to practical use,.....	C
A. Its legal protection shall last for 10 years from the time it is created B. Its legal protection shall last for 15 years from the time it is created C. Its legal protection shall last for 05 years from the time it is created D. Its legal protection shall last for 20 years from the time it is created	
In the context of the 'must fit' exception, which of the following scenarios is true?	C
A. The entire car exhaust system can be copied without permission B. The design of a contact lens front surface can be copied C. Only the parts of an exhaust system that connect to the car can be copied D. The overall shape of a car cannot be copied	
Which of the following cannot be registered as a design under the Registered Designs Act? (NHUNG HOÀNG)	B
A. A sculpture B. A computer program C. A vehicle's external shape D. A typeface	

Which is not the way of recovering the cost of developing an engineering technology (an IP)?	C
A. Both of b&d B. Granting a license to a company, who all paid a royalty for the right to use the IP. C. Applying for the IP registration at an authorized State agency. D. Making a product and selling it, with the IPR keeping competitors out of the market.	
How to acquire IPRs?	D
A. Assignment B. Licensing C. Know-how contract D. All are correct	
Which of the following is NOT a type of Intellectual Property Right (IPR)?	D
A. Patent B. Copyright C. Trademark D. Real Estate Ownership	
Why is protection of Intellectual Property Rights (IPRs) significant? (check all that apply)	ABD
A. Encouraging creations and innovations B. Protecting innovations and investments required for the development of advanced technologies. C. Not sustaining long-term social growth. D. Promoting a comprehensive cooperation among countries worldwide.	
If an owner of copyright believes the material it protects is being copied without permission, which are the courts the owner will take a legal action for the infringement? (NHUNG HOÀNG)	B
A. Courts having the jurisdiction on labor cases. B. Civil courts. C. Courts having the jurisdiction on marriage issues. D. Courts having the jurisdiction on administrative cases.	

What does this mean for Ander if he is an author of a novel based on the "National treatment principle" in the Berne Convention on Literary and Artistic Works 1886 A. He is required to register his works with the Berne Convention office. B. He is exempt from any copyright regulations in the Berne Convention's country members C. His novel will be in the public domain. D. Ander is given the same rights and privileges (copyright) to his novel as domestic authors in any country that ratified Berne Convention.	D
What is the main domestic law applicable in the UK for copyright? A. The Copyright, Designs and Patents Act 1988 and its revision B. A WIPO Treaty on Copyright C. EU directives on e commerce and digital copyright D. The Patents Act 1977	A
What is the requirement for an invented word to be a trade mark? A. It must be distinctive B. It must be meaningful C. It must indicate the nature of the products D. It must be new	A
Who is the designer? A. The draughts person who made the drawing B. Anyone who contributes the ideas of the drawing C. Person who provides the concept for designing D. All are correct	D
What does the term "moral rights" refer to in copyright? A. Rights related to the integrity and authorship of a work B. The right to make a profit from the work C. The right to distribute the work D. The right to modify the work without restrictions	A

*When you use the registered trade mark in relation to the goods/services specified in the registration, there is an infringement.(NHUNG HOÀNG) A. True. B. It depends. C. False. Besides what mentioned, the infringement must be caused with confusion. D. False. Because the use of registered trade mark in relation to the goods/services specified in the registration is passing off.	C
Which of the following is correct? A. According to UK law, false attribution right lasts for the life of the creator plus 50 years. B. Copyright extends to nonfictional information. C. According to UK law, copyright to a written work lasts for life plus further 50 years after the author's death. D. Copyrightable graphic works are protected by artistic copyright.	D
Which of the followings is NOT primary infringement of copyright? A. Copying part of a work without consent of author B. Importing infringing copies C. Translating a work without consent of author D. Adapting a work without consent of author	B
In the UK, if a design is created by a computer without human intervention, the design right is owned by___.(NHUNG HOÀNG) A. the person by whom the arrangements necessary for the creation of the design are undertaken B. anyone who think of the design C. the person by whom the arrangements unnecessary for the creation of the design are undertaken D. the computer	A
How long does copyright last in a broadcast?(073-356-8678) A. 70 years from the date of creation B. 50 years from its first transmission C. 50 years from the date it was created D. 100 years from the date of first transmission	B

What does "moral rights" protect?(NHUNG HOÀNG) A A. The author's right to be recognized as the creator and to protect the integrity of the work B. The financial rights of the author C. The right to distribute the work D. The public's right to access the work	
What happens to a work when its copyright expires?(NHUNG HOÀNG) B A. It is destroyed B. It enters the public domain C. It is renewed automatically D. It becomes the property of the government	
Who is a Defendant in a Case on Intellectual Property Rights (IPR)?(NHUNG HOÀNG) B A. The party who initiates the lawsuit by filing a complaint at a Court. B. The party being accused of infringing on the IPR by another party. C. The Owner of the IP or the party holding the rights to the IP D. Both of a&c.	
Why are intellectual property rights justified from an economic perspective?(NHUNG HOÀNG) C A. They restrict market entry B. They promote monopolies C. They encourage innovation and investment D. They limit consumer choice	
What does the term "WIPO" stand for?(NHUNG HOÀNG) B A. World Investment Policy Organization B. World Intellectual Property Organization C. Wildlife Investigation and Policing Organization D. World Institute for Prevention of Organized Crime	
Copyright protection is available for ____(NHUNG HOÀNG) D A. Scènes à falre B. Ideas C. Test method D. An original novel	

Which is the most appropriate option below regarding the legal liabilities imposing on IPR infringements?(NHUNG HOÀNG) A. Civil Remedies B. Administrative Sanctions C. Criminal Penalties D. All of a; b and c	D
What additional rights exist alongside the copyright of a sound recording?(NHUNG HOÀNG) A. Separate copyrights for the individual components like songs or scripts used in the recording B. Only the recording itself is protected by copyright C. Rights to sell or license the recording in perpetuity. D. Copyright for the recording studio where it was made	A
Computer programs can be protected by which IPRs? A. Copyright, topography right, trademark B. Confidential information, topography right, patent C. Trademark, confidential information, copyright D. Patent, confidential information, copyright	D (Mẹo: Topography right, patent, confidential information, copyright)
A design has individual character if(NHUNG HOÀNG) A. It appeals to the eye of the ordinary consumer B. It gives a different overall impression, when compared with prior designs, to someone who is an interested consumer for the products in question C. The difference over previous designs are not trivial D. Every one can find the difference between this design and others	B
Is 'One Touch View' registrable as trade mark for a telephone apparatus? A. Yes. Because it is used out of context B. No. Because it describes one of phone's features and is unregistrable C. No. Because it is generic D. All answers are incorrect.	B
Which of the following mark is likely to be registerable?(NHUNG HOÀNG) A. 'Mikka' for photocopiers B. 'Touch' for a touch screen device C. 'Miniclaw' for gardening tools D. 'Orlwoola' for woolen goods	A

In registered design, 'design' means	B
A. the internal description of the whole of a product which is not seen in normal use	
B. the appearance of the whole or a part of a product resulting from the features of, in particular, the lines, contour, colours, shape, texture and/or materials of the product itself and/or its ornamentation	
C. the design of any aspect of the shape or configuration (whether internal or external) of the whole of an article	
D. the design of any aspect of the shape or configuration (whether internal or external) of the whole or part of an article	
Overlapping protection can be a strategic tool for:	B
A. Maximizing legal costs	
B. Increasing the scope of protection	
C. Avoiding legal responsibilities	
D. None of the above	
In Vietnam law, what does industrial property right include? (NHUNG HOÀNG)	B
A. Rights to plant varieties	
B. Industrial design	
C. Copyright	
D. All are correct	
Which of the following is an example of "communication to the public"? (NHUNG HOÀNG)	A
A. Streaming a movie online	
B. Mailing a book to a friend	
C. Selling a CD in a store	
D. Reading a book at home	
A trade mark can exists under forms of a shape or a picture, either alone or combined with a word or words. Is this statement correct? (NHUNG HOÀNG)	A
A. Yes. It is	
B. No. Trade mark includes words or picture only	
C. No. Trade mark exits under form of symbols	
D. All are not correct.	

Which of the following is an example of a computer-generated work that would be protected by copyright?

A

- A. An image captured by an automatically scanning camera in a security system
- B. A photograph taken manually by a person
- C. A software program written by a human
- D. A handwritten manuscript

There is NOT infringement of copyright when.....
(NHUNG HOÀNG)

D

- A. The copy is made in different medium
- B. A small part of work is copied
- C. The work is translated into a foreign language
- D. The work is reviewed

If 'Supreme' is registrable for photography products?
(NHUNG HOÀNG)

B

- A. Yes. Because it is distinctive
- B. No. Because it indicates the photo quality
- C. Yes. Because there is no relevant between photo and supreme
- D. No. Because 'Supreme' is a fashion trademark

Which is the most appropriate option below regarding the potential Defendant in a Case on Intellectual Property Rights (IPRs)?

D

- A. The party (individual or company) that is allegedly using, selling, or reproducing the IP without proper authorization.
- B. The party (individual or company) that is allegedly producing or selling products that infringe on a patent, trademark, or copyright.
- C. The party (individual or company) that is allegedly involving in any action that is claimed to infringe the IP rights such as importing infringing goods or providing services that infringe on protected IP.
- D. All of a; b and c

In litigation: Plaintiff and Defendant, each party argues their case, often entirely orally, and the judge decides which side has the better argument. The model is known as
(NHUNG HOÀNG)

D

- A. Criminal procedure.
- B. Inquisitorial litigation.
- C. Civil procedure.
- D. Adversarial litigation.

What is the "most favored-nation (MFN) treatment" principle with regard to IP protection?(NHUNG HOÀNG) A. It means that any advantage, favor, privilege or immunity granted by a member state to its nationals shall not be accorded immediately and unconditionally to the nationals of all other member states. B. It means that any advantage, favor, privilege or immunity granted by a member state to the nationals of any other country shall be accorded immediately and unconditionally to the nationals of all other member states. C. It means that only the nationals of a member state can be granted advantage, favor, privilege or immunity with regard to IP protection but the nationals of all other member states. D. Both of a&c	B
How does copyright apply to computer programs?(NHUNG HOÀNG) A. Only applies to commercial software B. They are protected as literary works under copyright law C. They are not covered by copyright D. Only the source code is protected	B
If a work was created by multiple authors, when does the 70-year copyright duration begin? A. From the date the work is completed B. From the death of the last surviving author C. From the date of the first publication D. From the date the work is registered	B
What must a work be to qualify for artistic copyright? A. Original, not copied from elsewhere B. Registered with an official body C. Of high artistic merit D. Published in an art magazine	A
Who can handle the trade mark registration?(NHUNG HOÀNG) A. A professional trade mark agent B. Anyone C. The judge in the court D. The AI	B

____indicate that the user of the mark is a member of a trade association which owns the mark. A. Certification trade marks B. Generic marks C. Unregistered trade marks D. Collective trade marks	D
According to UK laws, which is not the types of IP case that the Patent Court (belonging to the Chancery Division of the High Court) hears? A. Cases relating to Registered designs and Design rights. B. Cases relating to the theft of artworks. C. Cases relating to Patent. D. Cases relating to Trade marks, Passing-off and Copyright.	B
Can a method of construction be protected by design right? (NHUNG HOÀNG) A. Yes, always B. No, methods of construction are excluded from design right protection C. Only if it is innovative D. Only if it is registered	B
How did the House of Lords rule in the case of British Leyland vs. Armstrong Patents Company Limited regarding car exhaust systems? A. They ruled that copyright could not be used to prevent car repairs at a reasonable price B. They upheld British Leyland's copyright claim C. They ruled in favor of Armstrong's copyright D. They decided that the exhaust system design was public domain	A
What is an invented word that used as a trade mark? (NHUNG HOÀNG) A. A word which has been made up specially for use as a trade and has no meaning in the English language B. A word which is commonly used in specific context C. Any word with meaning is invented word D. A word which is used out of it context	A

How would you copyright a poem that you have created and sent to a poem contest?	A
A. It is protected by copyright once you have written it on paper or any other medium. B. You need to receive a Copyright certificate from the Copyright Office in your country. C. It is never protected by copyright, because you have let people at the contest read it. D. You need to register it with the Copyright Office in your country and in foreign countries.	
Who must prove primary infringement? (NHUNG HOÀNG)	A
A. The right owner B. The licensee C. The infringer D. Police	
What is the primary Law in the area of intellectual property in Vietnam?	C
A. Vietnam Copyright Law B. Vietnam Trademark Law C. Vietnam Intellectual Property Law 2005 (amended and supplemented in 2009, 2019 and 2022). D. Vietnam Industrial Design Law	
Which statement best describe the owner of a registered design?	B
A. A person who actually creates a registered design B. The company placing the commission C. The manager of the technical team of a company D. A person who contributes the idea	
What is the advantage of the community right? (NHUNG HOÀNG)	A
A. Community right has the same effect in all EU countries, and that for the registration system there need be only one application. B. The community right does not have any advantage C. Community right has the different effect in all EU countries, so in some countries it can have longer protecting duration D. Community right has the same effect in all EU countries but in some special circumstances it can have longer protecting duration	

Which of the following is a moral right in Vietnamese IP law? A. Public communication right B. Right to attribution C. Right to lease D. Right to make copies	B
What does the legal term "overlap in Intellectual Property Right (IPR) protection" mean?(NHUNG HOÀNG) A. It indicates the simultaneous use of multiple IPR protection mechanisms to protect a single IP. B. It refers to the legal conflicts arising when one type of IPR protection are applied to more than one IP. C. It implies the expiration of IPR protection, allowing others to use the protected IP freely. D. It is about the collaboration among creators/owners to collectively protect their IPRs.	A
Which of the following is considered a 'literary work' under copyright law, relevant to engineering? A. Sound recordings B. Engineering reports C. Films D. Broadcasts	B
The UK government department has copied a design and authorised Company H to manufacture the design for use in the national defence of the UK. Which of the following is RIGHT?(NHUNG HOÀNG) A. If the Department uses of the design in the way as described above, it has to notify and inform of the extent of use to the owner of the design. B. The owner of the design can sue the Department for an infringement of Design right C. The Department cannot copy the design for any purposes. D. The Department cannot authorise the company H to manufacture the design, and this is an infringement.	A
Which of the following is not excluded from a design registration? A. a mass-produced product with novelty and individual character B. a feature of a product which is dictated by its function C. internal features which are not seen in normal use D. a feature which allows a product to fit to another product	A

A new software code can be protected by:(NHUNG HOÀNG) A. Trademark and Design Right B. Copyright and Patent C. Patent and Trade Secret D. Copyright and Trade Secret	B
Which of the following forms a secondary infringement of copyright? A. Smith purchases copies abroad and imports them into the UK. B. Smith adapts a copyright work of Peter. C. Smith copies a substantial part of Peter's non-technical book. D. Smith photocopies a copyrighted book of Peter.	A
Which of the following is not primary infringement of copyright? A. Purchasing copies abroad and importing them into the UK B. Adapt a copyright work C. Making a short-term copy in a different medium to the original work D. Reutilising a substantial part of a computer-stored database	A
Is IPR assignment a contract?(NHUNG HOÀNG) A. Yes, it is a contract B. No, it is a kind of order with military nature C. No, it is a license D. No, assignment is a kind of home exercise for student	A
What are the main objectives of WIPO?(NHUNG HOÀNG) A. To promote the protection of intellectual property worldwide B. To ensure administrative cooperation among the intellectual property Unions established by the treaties that WIPO administers C. A and B is correct D. A and B is not correct	C

Under the 'must match' exception, what can be freely made and sold? A. Any patented product B. Replacement parts that must match other parts of a product C. The original product only D. Decorative items	B
What is not the benefit of winning a lawsuit?(NHUNG HOÀNG) A. Sending a message to others that IP owners is willing to defend the IPR. B. Protecting the market for the products of IP owners by stopping infringers from IP infringements C. Spending time and money for the litigation. D. Other parties need to take an IPR license if they intend to exploit the IPR.	C
Why is surface decoration not protected by design right? A. Because it is too complex B. Because it is not functional C. Because it can be protected by registered designs law instead D. Because it is too simple	C
What kind of works in graphic design can be protected by intellectual property rights?(NHUNG HOÀNG) A. Only logos B. Only printed materials C. Graphic design works that is tangible and creations of minds D. Only digital designs	C
Which is the Statute in the UK that covers a wide range of intellectual property rights, including copyright, design rights, and patents? A. Trade Marks Act 1994 B. Copyright, Designs and Patents Act 1988, amended in the 1990s. C. Copyright and Related Rights Regulations 2003 D. Patents Act 1977	B

What is the significance of the 50-year duration for copyright in broadcasts and cable programmes? (NHUNG HOÀNG) A. It defines the period during which the copyright holder has exclusive rights over the content B. It limits the time a programme can be aired C. It determines when a programme can be remade D. It ensures that the content can be freely shared after 50 years	A
What is required for electronic works to qualify for copyright protection compared to conventional literary works? A. The need for legal registration B. The work must be published C. There must be a spark of creativity D. The work must be over a certain length	C
How does the duration of copyright in a cable programme compare to that of a sound recording? A. Both last for 50 years from the date of first transmission or release B. Copyright in cable programmes lasts longer C. Sound recordings have indefinite copyright protection D. Cable programmes have shorter copyright duration	D
Some types of copying or of trading in copyright material are criminal offences. What are they? (NHUNG HOÀNG) A. Making the article for private or domestic use B. Selling, hiring, exhibiting or distributing the article in the course of a business C. Designing a famous quote of someone for decoration D. Copy some pages of a book for researching	B
What is individual character informed? (NHUNG HOÀNG) A. The design must be identical to the other previous designs or available products B. The design must be original C. The design must produce on an informed user an overall impression which differs from the overall impression produced by the earlier design D. All are correct	C

Which value of ideas and information that Intellectual Property Rights (IPR) protect? (NHUNG HOÀNG)	D
A. Ethical value B. Moral value C. Social value D. Commercial value	
A literary work must be..... for being protected by copyright	C
A. long B. complex C. Neither long nor complex D. Long and complex	
A patent application has been updated after it has been filed to incorporate new features.	B
A. True B. False	
A patent granted in the one country has legal effect.....	B
A. Worldwide B. only in the country of registration C. in the European Union D. in country of nationality of the owner	
A patent is infringed	A
A. Only when every feature within at least one claim is used in the allegedly infringing article or process B. When some features are used in the allegedly infringing article or process C. The allegedly infringing article or process looks like the patented one D. The allegedly infringing article or process is developed from the patented one with consent of	
A photograph is protected by	A
A. copyright B. patent C. registered design D. Trademark	
A registered design can not be protected by.....	B
A. Copyright B. Design right C. Patent D. Registered design	

A registration of domain names usually lasts for year(s), and if not renewed, can be allocated to another owner. A. 1 B. 2 C. 3 D. 4	B
A tool kit can not be protected by..... A. Copyright B. Patent C. Design right D. Registered design	A
A trade mark can be..... A. A word B. A symbol C. A smell D. An invented word, a symbol and a smell	D
A trade mark is always protected, even if it loses its distinctiveness. A. True B. False	B
A triangle eyeglasses box can be protected by..... A. Design rights B. Copyright C. Patent D. Trademark	A
An article of company X was designed by its employee.- Mr. Y. Two years later, X transfers design right of this article to other company without consent of Y. Such transfer is..... A. A secondary infringement of design right B. A primary infringement of design right C. Not an infringement of design right D. An infringement of copyright	C
An engineering drawing on paper is NOT protected by A. Copyright B. Patent C. Trademark D. Design right	C

An exception to patent infringement is.....	A
A. Using the patented invention on behalf of the government B. Selling a patented product for non-commercial use C. Copying that patent for personal use D. Using that patent for public use	
An unregistered trade mark shall be.....	B
A. Fully protected B. Partly protected C. Not protected D. Full protected within limited period	
Article 50 of TRIPs requires courts or equivalent judicial authority to grant a provisional measure order accordingly the applicant's request (with out any request)	B
A. True B. False	
As the term "BM Apple" as registered as a trade mark of a company selling apples, the term "BN Apple"	A
A. Can not be registered as a trade mark of a company selling apples B. Still can be registered as a trade mark of a company selling apples C. Can be registered as a trademark of all company D. Can not be registered as a trademark of any company	
Ben covers a song with consent of the author. In addition to the name of the author, Ben adds his name to that song. Ben might	B
A. commit infringement of reproduction right B. commit infringement of paternity right C. not commit infringement of intellectual property right D. commit infringement of translation right	
Business methods are.....	A
A. patentable in the US but not patentable in the UK B. not patentable in both UK and US C. patentable in both UK and US D. Not patentable anywhere	

Buying a toy car being protected by registered design is.....	C
A. A secondary infringement of design right B. A primary infringement of design right C. Not an infringement of design right D. An infringement of copyright	
Comparative advertising does not infringe trade mark use unless	B
A. it is for the company's advantages B. it is not in accordance with honest business practices. C. it serves customers with information D. All trade mark uses in comparative advertising contribute the infringement to trade mark protection	
Computer program can be protected by	B
A. Copyright, topography right, trademark B. Confidential information, topography right, patent C. Trademark, confidential information, copyright D. Topography right, patent, confidential information, copyright	
Copyright can be applied to	D
A. Music, plays and conventional artistic works including paintings and sculptures. B. Works of artistic craftsmanship such as individually designed items of furniture. C. Typefaces and to typographical editions, that is, the way a literary work is laid out on a page. D. All of others are correct	
Copyright license can only be made in writing	B
A. True. Since the IP license can be granted only in written forms. B. False. An IP license can be also granted orally but it is highly preferable if the agreement is in written form. C. False. An IP license can only be made orally D. None of the given statements are correct	

Dealing with trading counterfeit goods is an international problem due to major differences in national laws, particularly in the Far East. In these countries, what measure prevails as a viable way for this problem?	B
A. Enacting a new international mechanism B. International lobbying on a long-term basis. C. Enhancing more international observations D. Do nothing, since this is a domestic problem of a country	
Design right.....	A
A. Can arise however the design is created and regardless of whether or not any copyright arises B. Apply to the individual elements of a design C. Only protects the visible parts of designs D. Is only applied upon registration	
Domain names are registered by the principle of	D
A. Peer-reviewed B. censorship C. Resources restriction D. first-come first-served	
Duration of copyright in sound recordings or films according to UK law	A
A. Lasts for 50 years from the year the film or record was made or, if it is released to the public, 50 years from its release B. Lasts for the life of its creator plus a further 50 years. C. Lasts for 70 years begins to run on the death of the last surviving creator if two or more authors were jointly involved in the work D. The copyright lasts for 70 years from the end of the year in which the copyright material was created	
Each of the following is considered trade dress except	A
A. The white linen tablecloths at the Four Seasons Restaurant in New York City. B. The font and size of print used in a national store's print advertising. C. The brown uniforms and trucks at UPS. D. The costume worn by your school's mascot at sporting and other events.	

Exclusive license is	A
A. the licensee will have no competition B. the licensor will afford no licenses to other persons within the contractual territory C. A and B are correct D. A and B are incorrect	
If a book cover is designed under the order of a publisher, the ownership of this page is	C
A. The author of the book B. The designer of this book cover C. The publisher D. Public	
If copyright material is created by a computer, the owner of this copyright is (NHUNG HOÀNG)	C
A. The computer B. The company producing this computer C. The person making the arrangement necessary for that creation. D. Nobody	
If the design is put to practical use that means that the articles are made and sold, hired or advertised	A
A. Its legal protection shall last for 10 years from the end of the year in which the articles are sold, hired or advertised B. Its legal protection shall last for 05 years from the end of the year in which the articles are sold, hired or advertised C. Its legal protection shall last for 15 years from the end of the year in which the articles are sold, hired or advertised D. Its legal protection shall last for 20 years from the end of the year in which the articles are sold, hired or advertised	

In the 1990s, there was an explosion of names registered by US Network Solutions, the administrator of the top level domain (TLD) with the suffix .com. What sorts of problems quickly arose then: A. owners of trade marks identical to the domain name objected to use of the domain name, and unscrupulous persons registered variations of famous company names and offered to sell them for large sums of money - this is called cyber-squatting. B. Company can easily get their domain name as they wish on the Internet, and this is more easier to company with famous brand. C. People can register for domain names easier and provide such names to anyone in need for free D. Nothing happened.	A
In the UK, a trade mark is used without registering is permitted. A. This is correct. A marked can be used without registering although it is recommended that registration is always needed for enjoying protection. B. This is not correct. Once being used, a trade mark has already been registered. C. This is not correct. Trade mark must be registered before using in the course of trade D. None of the statements are correct.	A
In the UK, if you want to search for registering of trade marks, who have all information to help you? A. a trade mark agent B. patent attorney C. a commercial searching organization D. All are correct	D
In the UK, there are criminal provisions relating to misuse of trade marks and relate only to A. Registered trade marks B. Unregistered trade marks C. Get-up D. All are correct	A
In which case the designer owns rights in a registered design A. The designer created the design in the course of employment B. The designer created the design under commission C. The designer created the design at his own expenses for his own purpose D. The designer assigns his registered design to another person	C

Indirect compensation includes(073-356-8678)	D
A. post-calculated, recurring payments, the amount of which is determined under economic use or result (sales, profits).	
B. a pre-calculated amount paid once or in installments	
C. compensation for services and assistance rendered by technical or professional experts.	
D. dividend or income from related operations: commission paid to licensor for his assistance in selling.	
Infringement of design right occurs when.....	B
A. It exists two similar designs	
B. It is shown that the alleged copyist had access to the design in question	
C. The activity of copying is proven	
D. The design in concerned is registered	
Integrity right applied to	B
A. Computer programs, works created for newspapers or magazines or multi-authored works, such as encyclopedias	
B. Copyright material created before the 88 Act came into force on 1 August 1989, provided the creator was alive on that day and had not assigned or licensed the copyright.	
C. Films created before 1 August 1989	
D. None of others is correct	
Manufacturing an article protected only by a UK granted patent in China is.....	C
A. A secondary infringement	
B. A primant infringement	
C. Not an infringement of patent	
D. An infringement of IP rights	
Name of a product is protected by	C
A. Copyright	
B. Confidential information	
C. Trademark	
D. Topography right	
Once a design is registered in the UK, it will be protected.....	C
A. worldwide	
B. Only in the UK	
C. In any country where such registration is applied	
D. Outside of the UK	

One of the requirements for an invention to be patented is.....	B
A. Having individual character B. Not being obvious C. Being artistic D. Being original	
Part of an Internet address, such as cengage.com → Domain name	A
A. True B. False	
Passing off refers to infringement of	B
A. Registered trade mark B. Unregistered trade mark C. Both registered and unregistered trademark D. Neither registered nor unregistered trademark	
Paternity right	D
A. Is similar to copyright B. Lasts forever C. can be transferred D. Is given only to the author of an artistic works	
Paternity right does NOT apply to:	B
A. A book B. Computer programmes C. An article D. A photograph	
Protected trade marks include....	C
A. Registered trade marks B. Unregistered trademarks C. Both registered and unregistered trademark D. All marks in the market of one specific country	
Regarding the novelty, relevant date may be (i) Filing date; (ii) Priority date	A
A. (i) or (ii) B. (i) and (ii) C. Only (i) D. Only (ii)	

Surface decoration shall not be protected by any type of IPR.	B
a. True b. False	
The assignment and licensing agreement shall be registered by the competent authority as required by law.	B
A. No. Only the licensing is needed B. Yes. They can be registered upon the requirement of the law C. No. Only the assignment agreement is needed D. No. They can never be registered	
The author of copyright of a writing is	B
A. The person who provides ideas for this writing B. The person who expresses this writing C. Both the person who provide ideas for and express this writing D. The person who copying this writing	
The author reserves the right to object any changes to his original work which would be prejudice to his honor or reputation.	A
A. True B. False	
The color or shape of an item, if distinctive, is	B
A. a trade mark. B. trade dress. C. a copyright. D. a patent.	
The design of contact lenses can	B
A. Be protected by design rights B. Not be protected by design rights C. Be protected by patent D. Not be protected by patent	
The exclusive right of an offer or originator of a literary or artistic production to publish, print, sell, or otherwise use that production for a statutory period of time → Patent	B
A. True B. False	

The know-how may be delivered in the forms of	D
A. documents only	
B. None is correct	
C. technical service and other intangible forms only	
D. the tangible forms or intangible forms	
The main law applicable in the UK for copyright is	A
A. The Copyright, Designs and Patents Act 1988 and its revision	
B. A WIPO Treaty on Copyright	
C. EU directives on e-commerce and digital copyright	
D. The Patents Act 1977	
The Mark used by one or more persons, other than the owner, to certify the region, materials, mode of manufacture, quality, or other characteristic of specific goods or services → Certification Mark	A
A. True	
B. False	
The owner of copyright of a music sound recording is the.....	C
A. Author	
B. Singer	
C. Producer	
D. Recorder	
The protection of design right is applied.....	A
A. To all original and non-commonplace articles	
B. To only registered articles	
C. To only some technical objects	
D. To only some artistic works	
The term "Gala Apple" could be refused to be a trade mark because.....	B
A. It is not pronounceable	
B. It indicates the nature of one type of apple	
C. It is an invented word	
D. It is not clear	
To apply for a patent, an inventor must.....	A
A. File an application at a patent office which must comply with formal and technical requirements	
B. Demonstrate that their invention works	
C. State the date on which the invention was first "reduced to practice"	
D. Apply it	

To be protected by design right, an article must NOT..... A. Be original B. Be non-commonplace C. Have an individual character D. be original and non-commonplace	C
To be registered as a trade mark, a term must A. Be distinctive B. Not indicate the type, quality, purpose or geographical origin of the goods C. Both distinctive and indicate the type, quality, purpose or geographical origin of the goods D. Be meaningful	C
Trade marks indicate a specific producer. A. True B. False	A
Under Berne Convention, in most cases, the copyright shall last for A. The author's life plus 70 years B. The author's life C. The author's life plus 50 years D. 70 years	C
Unregistered trade mark..... A. Can not be protected by IP law B. Can be protected by IP law upon the satisfaction of requirements C. Can be protected by IP law in all cases D. Can be protected by IP law in limited area	B
Until 2022, Vietnam has not been a contracting party of:(NHUNG HOÀNG) A. WIPO Copyright Treaty B. Bern Convention C. Paris Convention D. Hague Agreement	A
Using a trade mark in a different writing style is.....(NHUNG HOÀNG) A. An infringement of trade mark B. Not a primary infringement of trade mark C. Not a secondary infringement of trade mark D. An infringement of copyright	A

What does NOT protects the intellectual property created by designers? A. Copyright B. Patents C. Registered designs D. Design rights	B
What does royalty mean? A. post-calculated, recurring payments, the amount of which is determined under economic use or result (sales, profits). B. a pre-calculated amount paid once or in installments C. compensation for services and assistance rendered by technical or professional experts. D. dividend or income from related operations: commission paid to licensor for his assistance in selling.	A
What intellectual property right can be licensed? (NHUNG HOÀNG) A. Any IPR B. Copyright only C. Registered design only D. Trade mark only	A
What is an assignment? A. The ownership of IPRs is transferred from the assignor to the assignee. Upon assignment, the assignee becomes the owner of the rights. B. The ownership of IPRs is transferred from the assignee to the assignor. Upon assignment, the assignor becomes the owner of the rights. C. The ownership of IPRs is transferred from the assignor to the other assignee. Upon assignment, the assignor remains the owner of the rights. D. None of the above definitions is correct	A
What is privacy right? A. The right not to be wrongly named, that is, not to have a work falsely attributed to a creator B. Relates to photographs taken under a commission (i.e. for payment) for private purposes C. The author's right to object to a distortion or mutilation of a work when it is published, or to changes made which are considered to be prejudicial to the honor or reputation of the creator D. The right for the creator of a literary, artistic, dramatic or musical copyright work and the director of a film (unless he or she is an employee) to be named as author or director in certain circumstances	B

What is the correct statement about 'originality'? (NHUNG HOÀNG) A. Originality means 'not copied' and nothing more B. Originality requires creative effort C. Originality means that the creator does not copy others' work and has contributed skill or labour. D. Originality means being totally new	C
What trade marks international system allows anyone with a trade mark registration in one member country to make a single application covering all, or a selected number, of other member countries? A. Hauge Agreement B. Madrid Agreement C. Paris Convention D. Berne Convention	B
When a machine is protected by registered design, the drawing of this machine is..... A. Also protected by registered design B. Not protected by IP rights C. protected by copyright D. Protected by patent	C
When a trade mark has become representative of a broad type of products as opposed to being descriptive of a particular brand, the trade mark has become and the holder has lost the right to enforce the mark against competitors. A. limited B. authentic C. original D. generic	D
When you use the similar mark on the registered or similar goods/services is an infringement A. Yes. This is enough to conclude that there is an infringement B. No. This will be an infringement when the use likely causes public to be confused. C. Yes. This is an infringement since it can devalue goods or services. D. Yes. This is an infringement because it offers more choices for customers.	B
Which country is NOT a member of Bern convention before 2022? A. Vietnam B. Singapore C. Laos D. Indonesia	C

Which is considered as copying part of a work according to UK law? A. Adapting a copyright work, which includes translating it. B. Copying one line of a well-known song in a nontechnical context C. The extraction or reutilisation of a computer-stored database, whether the whole or a substantial part D. A photocopy of a book, or a scanned-in digital copy of a photograph	B
Which is considered as infringing a broadcast program copyright? A. Adapting a copyright work, which includes translating it. B. Copying one line of a well-known song in a nontechnical context C. Re-broadcast it or include it in another cable programme D. The extraction or reutilisation of a computer-stored database, whether the whole or a substantial part	C
Which is NOT considered as copying part of a work? Which is NOT considered as copying part of a work? (NHUNG HOÀNG) A. Uses a 'substantial part' of a work. B. Copying one line of a well-known song in a nontechnical context, C. Copying one frame from a film D. A photocopy of a book, or a scanned-in digital copy of a photograph	D
Which is NOT right about "literary copyright" according to Act 88? A. A literary work is 'any work ... which is written, spoken or sung' B, Copyright applies from the instant the work is recorded and the law refers to this being 'in writing or otherwise' C. The 88 Act is silent on quality or literary merit D. The author's intention is relevant. An internal memo is legally protected to the same degree and the same value as a fully revised paper written for publication.	D

Which is NOT right about "literary copyright" according to Act 88?	A
A. One word is sufficient to be a copyright work, such as a company name B. Titles of books and magazines, particularly when they consist of conventional words, are not copyright C. A list of code words or shorthand symbols will also be protected by copyright D. The only hint of a criterion is on length	
Which is NOT right about copying computer programs? (NHUNG HOÀNG)	A
A. Conventional translation of a program from English into a foreign language B. When an applications program on a disk is loaded onto a personal computer (PC), a copy is made in a different medium C. When hardware is running software, parts of the software code are copied internally, for example, from a read-only memory into an instruction register D. Computer programs cannot be used without an act of copying, it is legally essential for the copyright owner to give permission for the copying.	
Which of the following is an example of a suggestive trade mark?	D
A. Fruit of the Loom B. Victoria's Secret C. eBay D. Netflix	
Which of the following is not "use in the course of trade"?	C
A. Fixing the sign to goods B. Fixing the sign to the business paper C. Presenting the sign for teaching purpose D. Selling the goods under the sign	
Which of the following is NOT a source of international copyright law?	B
A. Bern convention B. Paris convention C. TRIPS - Trade-Related aspects of Intellectual Property Rights D. WIPO Copyright Treaty	

Which of the following is NOT an infrigment in copyright according to UK law? A. Copying in a different medium to the original work, such as a photocopy of a book, or a scanned-in digital copy of a photograph B. Making a short-term or transient copy C. Speaking words aloud without making a copy whether by shorthand or on tape D. Making an object in three dimensions from a drawing of that object	C
Which of the following is NOT an infrigment in copyright? A. Someone copies without the copyright owner's permission B. A photographer takes a photograph of a particular scenic view, even though the photograph is virtually indistinguishable to another person's photograph. C. Someone creates a scene in a studio to reproduce a scene in someone else's photograph D. One similarity drawing has had access to the material which has supposedly been copied	B
Which of the following is not eligible for immediate trade mark protection? A. fanciful trade marks B. descriptive trade marks C. arbitrary trade marks D. suggestive trade marks	B
Which of the following is NOT right about Copyright in computer programs according to UK law? (NHUNG HOÀNG) A. are classified as literary works B. as 'any form of notation or code, whether by hand or otherwise and regardless of the method by which, or medium in or on which, it is recorded' C. enough for electronic copyright D. The 88 Act does not define 'computer program' or even 'computer' to ensure that the law will still apply even when technology moves on and new types of machine are developed which are not recognisable as computers, or new methods of instructing hardware are devised.	C
Which of the following is protected by copyright? (073-356-8678) A. Idea B. Concept C. Expression D. None of others is correct	C (Biểu thức)

Which of the followings can be patented?	C
A. Mathematical method B. Presentation of information C. New materials D. Scientific theory	
Which of the followings is correct?	C
A. Trade mark must be a word in English B. Trade mark must be an invented word C. Trade mark could be a symbol D. Trade mark must be pronounceable	
Which of the followings is not true	C
A. "Flowers" are not accepted to be registered for flowers B. Distinctiveness must be evaluated in connection with the goods to which the trademark is applied C. Common words cannot be used as distinctive signs D. If a sign is not distinguishable, it cannot be treated as a trademark	
Which of the followings may be distinctive	C
A. A natural shape of a good B. A single color C. A new cartoon & a non-descriptive invented word D. A functional shape	
Which of these events potentially triggers the right of attribution	C
A. Broadcasting a recording of a song on the radio B. Uploading a song to a file-sharing website C. Broadcasting a recitation of a poem on the radio D. Using a song in a film	
Which one of the followings is incorrect	D
A. Injunction and delivery-up can be applied even in case the plaintiff suffers no damage. B. Courts may apply provisional measures where any delay is likely to cause irreparable harm to the right holder. C. Provisional measures are applicable if there is a demonstrable risk of evidence being destroyed. D. The combination of injunction and delivery-up is not available if there is no damage incurred to the plaintiff.	

Which one of the followings is not correct	C
A. A part or parts of an article which connect it to another article shall not be protected by design right	
B. Anyone can make exhaust system for a car	
C. The fuse holder can be copied without permission	
D. A method of construction is not protected by design right	
Why do owners need to commercialize IPRs?	D
A. IPRs owner should translate IPRs into money for reinvestment and profit	
B. IPRs owner may not have enough resources to exploit IPRs.	
C. IPRs owner should commercialize IPRs by means of assignment or license.	
D. All are correct	
You and your co-worker are employees of a design company. Both of you are assigned to create a company logo for a client. In this case	B
A. Only you reserve the right of paternity	
B. Both you and your friend reserve the right of paternity	
C. Only your company reserves the right of paternity	
D. Your company, you and your friend all reserve the right of paternity	
You write an original story, what type of intellectual property right that you can claim? (NHUNG HOÀNG)	A
A. Copyright	
B. Trademarks	
C. Registered designs	
D. Patent	
Under the CTM system, why can an opposition in just one EU member state block an EU-wide registration?	B
A. Because CTM applies only to countries that allow such objections	
B. Because the CTM must be valid across all EU member states	
C. Because the registry does not examine conflicting marks	
D. Because all trade mark offices are connected	
Why is the distinction between TRIPs and WIPO treaties significant?	C
A. They serve the same purpose	
B. One is civil, the other is criminal	
C. TRIPs is WTO-based and includes enforcement mechanisms	
D. WIPO treaties are only symbolic	

What is one reason account of profits may be rejected as a remedy? A. It is too harsh B. The infringer may not have made significant profits C. It delays licensing D. It is banned internationally	B
In what scenario might a lecture recording shared online constitute copyright infringement? (NHUNG HOÀNG) A. If the speaker is popular B. If the room was public C. If the speaker did not authorize the recording and it was distributed D. If the audio was low quality	C
In what scenario would a contract for a consultant or Company B allow for the transfer of copyright ownership before the work is created? A If the contract includes a written assignment of copyright in advance of creation B. If the work is completed under the supervision of Company A C. If the work is published by Company A D. If the consultant agrees to sell the copyright after the work is finished	A
How can an unregistered trade mark gain protection in the UK? A. By building goodwill through use in commerce B. By applying for a registration after the mark becomes well-known C. By becoming registered within a year of first use D. Through approval by the UK Patent Office	A
Which of the following is excluded from design right protection? A. Surface decoration B. Internal configurations C. Functional components D. Tangible products	A
What does a trade mark represent in its simplest form? A. A representation of a product's function B. A description of the quality of a product C. A sign capable of being represented graphically that distinguishes goods or services D. A general name for a product	C

In a copyright case, when is quoting a published sentence without acknowledgment considered infringement?(NHUNG HOÀNG) A. Always B. If it's not for criticism or review and lacks attribution C. If it's from a journal D. If it's in a blog post	B
In UDRP, why is proving "no legitimate interest" critical? A. Because registrants can defend their use if they have legitimate rights B. To show the domain is valuable C. To show intent to profit D. To prove domain expiration	A
Vietnam's National Assembly passed the Law on Intellectual Property Rights (IPRs) in which of the following years? A. 1995 B. 2000 C. 2005 D. 2010	C
How can a previously unknown design in a remote museum affect a registration application? A. It will be ignored B. It helps marketing C. It may challenge novelty if discoverable in normal business D. It affects copyright only	C
Which is the appropriate one regarding the concept of overlaps in Intellectual Property (IP) protection? A. Overlaps are unnecessary complexities in the legal framework that should be avoided in IPR law. B. Overlaps occur when different types of IP can be protected by one type of IPR C. Overlaps are the parallel use of multiple IPR protection mechanisms to protect a single IP. D. All of them	C
Why does changing the format of a work (e.g., scanning to digital) still count as copying? A. It makes it more accessible B. Because it is still a material reproduction C. It removes metadata D. It improves resolution	B

Which of the following best describes a situation where passing-off may occur? (NHUNG HOÀNG)	B
A. A competitor sells secondhand goods as if they were new B. A competitor uses a similar mark or get-up that causes market confusion C. A competitor changes the product's packaging D. A competitor develops a similar product but with minor design differences	
If someone creates an identical product without copying anything, which right is likely to be infringed?	C
A. Registered design only B. Copyright C. Patent D. Moral rights	
What is a culturally sensitive way to begin contact with a potential licensee?	C
A. Sending mass emails B. Legal warning letter C. Confidential and respectful approach D. Asking for upfront payment	
What must a trade mark not describe?	B
A. The design of the product B. The type, quality, purpose, or geographical origin of the product C. The color of the product D. The size of the product	
Can a feature that allows connection with other parts (must fit) be registered?	A
A. No, it is excluded B. Yes, if it is modular C. Only with permission D. If it's 3D printed	
What should be carefully considered before agreeing to joint ownership of copyright? (NHUNG HOÀNG)	A
A. The severe restrictions on granting permission to others to copy or use the material B. The potential for increased revenue C. The ability to control the distribution of the material D. The ease of managing the copyright collectively	

What are statutory instruments?	A
A. Detailed rules under Acts of Parliament B. Election regulations C. Technical manuals D. Public school policies	
What happens if a UK registered design is used in a toy instead of a real vehicle?	C
A. It's not protected B. Only trademark applies C. It still counts as infringement if the design is copied D. It becomes fair use	
If you rebrand a business using another company's logo, it may lead to:	B
A. Increased loyalty B. Legal trademark action C. Free advertising D. Innovation grants	
What role do professional trade mark agents play in the registration process?	C
A. They provide a legal defense for trade mark disputes B. They are responsible for manufacturing the goods C. They assist with registration and advise on the feasibility of using a trade mark D. They are only involved in defending the trade mark against infringement	
Which of the statement is correct about design right?	D
A. In the UK, design right lasts for 20 years from first marketing of the article B. In the UK, design right lasts for 20 years from first invention of the article C. In the UK, design right lasts for 5 years after preparing a non-marketed design D. The government can authorise companies to manufacture the design for use in the health service	
Which group is generally excluded from claiming moral rights in software code? (NHUNG HOÀNG)	C
A. Freelance developers B. Open-source contributors C. Engineers writing computer programs D. Educational programmers	

Why might an IP owner ask for destruction instead of selling infringing goods?	A
A. Because the goods may be of poor quality B. To avoid taxes C. To reduce evidence D. To gain popularity	
What does the term "communication to the public" mean in copyright law?	B
A. A private sharing of the work B. Making the work available to the public by electronic transmission C. Distributing physical copies of the work D. Creating derivative works for public use	
Which of the following is true about the legal protection of unregistered trade marks under passing-off? (NHUNG HOÀNG)	B
A. Protection is automatic once a mark is used in commerce, regardless of reputation B. The mark must have built goodwill and reputation in the marketplace C. Protection only exists if the mark is used in at least two different countries D. The mark must be registered before protection against passing-off can be claimed	
Which of the following is a moral right in Vietnamese IP law?	B
A. Right to make derivative works B. Right to publish the work C. Right to lease D. Right to make copies	
How might extra damages for "flagrant infringement" impact international business ties? (NHUNG HOÀNG)	A
A. They may escalate tension if not handled diplomatically B. They improve respect C. They are expected everywhere D. They reduce settlements	
What is required for a trade mark to be considered infringed in the UK?	B
A. The mark must be used in another country B. The mark must be used without the owner's permission C. The mark must be used for a different product D. The mark must be registered	

Which of the following qualifies as a literary work under UK copyright law? A. A color chart B. A computer virus C. A written report D. A logo without text	C
It is not an infringement if ____(NHUNG HOÀNG) A. Smith speaks words aloud without making a copy in any medium B. Smith speaks words aloud and makes a copy in a medium C. Smith lends his video equipment to Peter to watch an illicit copy D. Smith makes a master copy of a song to produce compact disks without permission	A
How can the distinctiveness of a colour mark be strengthened? A. By using multiple colours B. By using only one shade C. By specifying the exact shade, such as through Pantone numbers D. By combining it with other symbols	C
Why might joint ownership of copyright be problematic in a commercial context? A. Joint ownership allows unrestricted use of the material by all parties. B. It simplifies the decision-making process regarding the use of the material. C. Granting permission to others to use or copy the material requires the consent of all co-owners, potentially leading to complications. D. It ensures that each owner can independently sell the copyright without others' consent.	C
Why is a list of code words or shorthand symbols protected by copyright? A. Because they are registered trademarks B. Because they are part of a patent C. Because they are considered original literary works if recorded D. Because they are published online	C

What's an example of adapting a licence for community context? A. Using global templates B. Offering free use C. Including local training and knowledge transfer D. Copying foreign legal formats	C
Why is the term "construction of claims" crucial in patent litigation? A. Claims are often written in poetry B. It is part of financial accounting C. The legal meaning of terms affects the result D. It relates to design drawing	C
What is a common misuse of metatags that affects trade mark owners? A. Over-optimizing for SEO B. Using a competitor's mark invisibly to redirect traffic C. Hiding site location D. Duplicating content	B
What is the recommended action if a domain name causes confusion but is not an exact copy? A. Do nothing B. Report to police C. File a UDRP complaint D. Contact the domain registrar	C
Which one of the followings is NOT an original work? (NHUNG HOÀNG) A. Work A is copied from Work B B. Work A is a derivative Work of Work B C. The compilation of the unoriginal material called for work or skill or expense. D. A photocopy taken by a man	D
What kind of transmission qualifies as a broadcast for copyright? A. Public wireless transmission of sound or images B. Internal office messages C. Encrypted emails D. Closed-circuit TV	A

What does "right of distribution" allow the copyright holder to do? A. Control the sale, rental, or lending of copies of the work B. Modify the work as they wish C. Share the work without any restrictions D. Allow anyone to copy the work	A
Do paternity rights apply to works in encyclopaedias? A. Yes B. No, they are excluded C. Only if authored individually D. Only for online versions	B
Does integrity right need to be asserted in writing? A. Yes B. No, it is automatic C. Only for published work D. Only if the author is named	B
How should an engineer act if their photograph of a structure is used in a promotional video without permission? A. Contact the copyright office B. Publish the image online C. Evaluate ownership and assert their copyright under artistic works D. File a patent	C
What legal protection does a copyright owner gain by using customs enforcement? A. Trademark license B. Trademark ban C. The ability to block or seize infringing imports D. Patent clearance	C
What makes a use "permitted" under moral rights law? A. It's artistic B. It is incidental or related to current events C. It's been translated D. It's on a government platform	B

What additional copyrights might be involved when a speech is recorded? C

- A. Only the speaker's copyright
- B. There are no additional copyrights
- C. The shorthand writer and the sound recordist may have copyrights in their respective recordings
- D. The event organizer's copyright

What legal argument supports classifying software source code as a literary work? B

- A. It has artistic value
- B. Its structure mirrors written language with syntax and logic
- C. It requires patents
- D. It is stored in files

If a project is created under commission but ownership is not mentioned, who typically owns the copyright? B

- A. The client company
- B. The creator (consultant or external party)
- C. The government
- D. The design software vendor

When is using a short clip from a broadcast legally risky despite being brief? B

- A. If it's posted on social media
- B. If the original copyright owner has not authorized its public use
- C. If it's educational
- D. If it includes a watermark

Why would a visual designer in advertising waive their integrity rights contractually? B

- A. To increase moral claim
- B. To allow modifications required by client branding needs
- C. To increase authorship visibility
- D. To meet copyright obligations

Why is use of a film clip in a classroom typically legal? C

- A. It's on DVD
- B. It has subtitles
- C. If the showing is for instructional purposes by a teacher
- D. If it's under 5 minutes

What makes simultaneous copyrights in a single recording legally significant? A. They are easier to publish B. They require separate licensing for music, lyrics, and performance C. They expire faster D. They apply to physical format only	B
Which US law protects against cybersquatting? A. Digital Millennium Act B. Patent Law C. Anticybersquatting Consumer Protection Act D. Copyright Act	C
Which of the following is NOT a criminal offense under UK trade mark law? A. Applying a registered mark to counterfeit goods B. Using a trade mark for promotional purposes without selling goods C. Using an unregistered trade mark D. Selling counterfeit goods	C
Which of the following is not protected by the UK's trade mark law? A. Unregistered trade marks B. Registered trade marks C. Trade marks used for services D. Trade marks used for goods	A
What happens if someone uses a similar trade mark on goods or services that could confuse the public? A. It is considered trade mark infringement B. It is considered fair use C. It is a violation of the patent law D. It is a valid marketing strategy	A
What must a symbol used as a trade mark not be? A. A shape that results from the nature of the goods B. A graphic representation C. A combination of words and shapes D. A product's design	A
Who regulates the domain name in the world? A. Nominet B. ICANN C. WIPO D. The UK Patent Office	B

How does the TRIPS Agreement enhance the protection of well-known marks?	B
A. By providing protection only in developed countries B. By offering additional rights to prevent confusion with similar marks C. By preventing the registration of any similar marks D. By allowing unlimited use without renewal	
What does a trade mark owner need to show to prove trade mark infringement?	B
A. That the product is of better quality B. That the mark is registered and used without permission C. That the product is genuine D. That the competitor has been notified	
How long does it typically take for a court to process a trade mark infringement case if the owner acts quickly?	A
A. The court may act within days B. It can take months for the case to be reviewed C. The court always acts within a year D. There is no legal time frame for action	
What is a "design document" in the context of design right protection?	A
A. Any record of the design, including paper sketches, digital files, or prototypes B. A patent registration form C. A legal contract between designer and manufacturer D. A publication in an academic journal	
How does the design right law treat semiconductor chips?	C
A. Only external features are protected B. Semiconductor chips are not covered by design right C. Internal layers of semiconductor chips are included under design right protection D. Only visible parts of the semiconductor chip are protected	

Why might someone prefer assignment over licensing?	A
A. They prefer a one-off payment B. They want to keep ownership C. It avoids paperwork D. It extends protection time	
What is exclusive license?	C
A. the licensee will have no competition B. the licensor will afford no licenses to other persons within the contractual territory C. A and B are correct D. A and B are incorrect	
What does "market watch" mean in terms of managing intellectual property?	A
A. Monitoring competitors' products and IP for potential infringements B. Focusing only on your IP's market value C. Creating advertisements for your IP D. Watching how the market reacts to your IP	
What is the role of an IP lawyer in protecting intellectual property?	A
A. To provide legal advice on IP registration and enforcement B. To manage the marketing of IP C. To register all IP rights with government offices D. To handle general business tasks unrelated to IP	
In what situation might a judge deny an injunction even if infringement occurred?	B
A. If the IP is foreign B. If financial compensation is sufficient C. If a licence exists D. If the infringer apologises	
What must an IP owner consider before taking action in a foreign court?	B
A. Whether they need a translator B. If litigation aligns with the local legal culture C. If the product is old D. If the IP is creative	

What type of legal concept is central to understanding a patent case?	C
A. Brand awareness B. Design drawings C. Claim construction and scope D. Public access to media	
What is the key difference between inspiration and infringement?	B
A. Colour usage B. Copying a substantial part without transformation C. Using free fonts D. Saving files in JPEG	
When might public litigation harm a company's international image?	A
A. If it is seen as unnecessarily hostile B. If it is fast C. If it involves copyright D. If the brand is well-known	
Why is the Paris Convention relevant for graphic designers and inventors?	B
A. It covers tax and trade B. It protects industrial property such as trademarks and inventions C. It regulates online marketing D. It applies only to pharmaceutical companies	
Which of the following statements is correct regarding Case law?	A
A. The UK's peculiarity is that it belongs to the common law system, which means "Case law"- Doctrine of Precedent is the main source. B. The UK's peculiarity is that it belongs to the civil law system, which means that written codes and statutes are the primary sources of law. C. In the UK, case law is considered optional, and judges are free to ignore precedents set by supreme courts. D. The UK does not follow the Doctrine of Precedent, meaning each case is decided solely on its individual facts without considering previous rulings.	

Does registered design protection cover different products using the same design?	B
A. No B. Yes, it applies even if the product is different C. Only within the same country D. Only if trademarked	
Why should businesses update marketing when a design registration expires?	B
A. For SEO B. To avoid false marking, which is a criminal offense C. To improve layout D. To claim royalties	
What step should a business take before sending legal notices about design infringement?	C
A. File a trademark B. Submit to social media C. Seek legal advice from a patent attorney D. Apply for a trade license	
Why is it important to include the design registration number when marking a product?	C
A. It helps track the sale B. It makes the product more valuable C. It provides legal warning to others and prevents innocent infringement claims D. It makes the design patentable	
Which of the followings may be a reproduction?	B
A. Temporary copy or downloading a work from a website B. Make any kind of copy even in different size C. Make a new work based on the original work D. All of others are correct	
When does copyright protection automatically apply to a work?	A
A. As soon as it is created and recorded B. When it is submitted for registration C. After it is published D. When the creator applies for it	

Lending video equipment for unauthorized showings may result in:	B
A. Free advertising B. Secondary infringement C. Loss of warranty D. No legal issue	
Which media formats are covered by copyright in sound recordings?	B
A. Only CDs B. All types, including tape. CD. digital formats C. Only published albums D. Vinyl records only	
Which is true about the use of a well-known model number in the engineering field regarding passing-off?	B
A. A model number is automatically protected as a trade mark B. A model number can be part of a passing-off case if it becomes associated with a particular brand C. A model number cannot be used as part of a passing-off claim D. Model numbers cannot generate goodwill in the marketplace	
What feature of domain names makes global trade mark enforcement difficult?	B
A. Local hosting B. Domains are viewed and used worldwide, while trade marks are national C. IP address duplication D. Private servers	
What is the primary goal of a trade mark?	A
A. To distinguish the products or services of one company from those of others B. To describe the product's features C. To guarantee the product's quality D. To represent the company's logo	
Which organization is responsible for granting patents in Europe?	C
A. WIPO B. USPTO C. EPO D. JPO	

Why does the law exclude computer-generated works from paternity and integrity rights?	B
A. They are too complex B. Because they lack a human creator who can assert personal moral claims C. Because they're unpublished D. Because they are software	
What should an engineer consider when their drawings are stored digitally in terms of protection and use?	A
A. That copyright applies equally regardless of medium and they should implement use restrictions B. That encryption is required C. That it only applies to paper drawings D. That digital copies must be watermarked	
What role does empathy play in IP enforcement?	A
A. It helps find mutual ground and avoid conflict B. It stops registration C. It delays court cases D. It reduces design value	
How does the TRIPS Agreement influence design law?	C
A. It defines copyright B. It bans reuse C. It sets minimum standards for design protection across member countries D. It grants automatic global patents	
How can logos evolve over time?	A
A. They can be varied as graphic fashions change B. They must remain the same to maintain recognition C. They cannot be changed once registered D. They must always include words	
Which of the following is NOT a requirement for registering a trade mark?	C
A. The mark must be distinctive B. The mark must not describe the goods C. The mark must be used for services, not just goods D. The mark must not be a common word	

What makes licensing a respectful business approach across cultures? A. It avoids direct engagement B. It invites cooperation while respecting ownership and control C. It skips negotiation D. It limits growth	B
What must be done for paternity right to become legally enforceable? A. Publicly post the author's name B. Sign a contract C. Assert the right in writing D. Submit to a licensing agency	C
Which of the following examples does the Design Registry use to illustrate an 'informed user'? A. Graphic designer B. Waitress evaluating a coffee pot C. Inventor D. Photographer	B
Which of the following can offer dual protection through copyright and design rights? A. An industrial machine B. A logo C. A piece of furniture D. A scientific discovery	C
What is the major consequence of registering a mark in a country that does not examine for similar marks? A. Two companies may own nearly identical marks for similar goods, leading to court disputes B. The registration will automatically be invalid C. The mark will only be valid for 3 years D. The mark cannot be renewed	A
Which of the following is an example of a country code TLD? A. .com B. .uk C. .net D. .org	B

What is the law controlling courts on court procedure in England and Wales and generally in Northern Ireland when they hear civil cases relating to Copyright. Designs. Trade Marks and Patents? A. UK Copyright, Designs and Patents Act 1988 (the 88 Act.) B. The WIPO (World Intellectual Property Organisation) Treaty on Copyright in 1996. C. UK Civil Procedure Rules 1999 D. UK Trade Marks Act 1994.	C
Which of the following clauses is not included in an IP license agreement? A. Who can perform one or more acts of exploitation? B. Remedies for failures or interference. C. The clause describing the process of creating the IP. D. Remuneration.	C
Does the type of product matter in design registration infringement? A. Yes, only identical products can infringe B. No. any product using the same or a substantially similar design can infringe C. Only if the products serve the same purpose D. Yes. only mass-produced items can infringe	B
Why is 'XpressLink' for telecommunications equipment likely to be refused as a trade mark? A. Because it is too distinctive B. Because it describes the product's function C. Because it is an invented word D. Because it is unrelated to the product	B
What does an IP "strategy" typically include for a business? A. Identifying. protecting. and managing intellectual property B. Advertising intellectual property freely to competitors C. Creating patents for every product D. Ignoring IP issues in favor of marketing	A

Which group is least likely to be the subject of IPR litigation?	B
A. Product designers B. Students using content for researcher C. Competing manufacturers D. Copycat brand owners	
Why does the 'must match' exception apply to car parts like wings or doors?	A
A. Because these parts must match the original design of the car to function correctly. B. Because they are always sold separately. C. Because they do not involve any unique design features. D. Because they are not considered integral to the car's design.	
Which type of IPR could overlap with the protection of a patented product?	D
A. Trademark B. Copyright C. Trade secret D. Industrial design	
Why is making a master disk for duplicated distribution a serious form of infringement?	B
A. It's for professionals B. Because it facilitates primary copying on a large scale C. It is in HD format D. It bypasses encryption	
Which of the following is NOT a step in protecting intellectual property rights (IPRs)?	B
A. Registering the IP with the relevant authority B. Ignoring potential infringers C. Consulting IP lawyers when necessary D. Marking the IP as "protected"	
Who are involved in different aspects of IP law?	C
A. Judges only B. Politicians C. Patent attorneys, solicitors, and barristers D. Scientists	

Rice "ST25" was developed and improved by a team of joint-authors including Mr. Ho Quang Cua. Dr. Tran Tan Phudng. and engineer Nguyen Thu Huong. At the World's Best Rice competition in 2019 organized by The Rice Trader. Rice "ST25" was awarded "The best rice in the world". Which of the following statement is right? A. "Rice ST25" was registered in Viet Nam as a Trademark of the product created by Mr. Cua and his team. B. "Rice ST25" created by Mr. Cua and his team cannot be registered as a Trademark. C. Some business organizations in the United States can register "Rice ST25" as the Trademark of their rice products according to the United States IP Law. D. Both of a&c	B
In which case can a trade mark owner prevent the use of a similar mark on similar goods? A. When confusion is likely among the public B. When the mark is a common phrase C. When the mark is registered in another country D. When the mark is used for non-commercial purposes	A
Does loading a program from a disk to a computer count as copying? A. No. it's use B. Yes, because a copy is made in RAM C. Only for servers D. Only for games	B
Does the use of code or shorthand affect copyright protection? A. Yes. it's excluded B. No, they are included if original C. Only if in English D. Only if translated	B
Which of the following is incorrect? A. The protection of design right applies automatically B. When the designer is an employed engineer who produces the design as part of his job. the engineer's employer owns the design right C. Design right can not be transferred into new ownership D. A person infringes design right if he imports an infringing article into the UK for commercial purposes	C

What could be a potential remedy for passing-off if the court rules in favor of the claimant?	B
A. A warning to the defendant to stop using the mark B. An injunction to prevent further use of the mark, and possibly destruction of the infringing goods C. The defendant's business operations are halted D. A compensation of 10% of the defendant's total revenue	
If a designer is publicly misattributed in a branding project, what is the most appropriate legal response?	B
A. Request license fee B. Invoke the false attribution right and seek injunctive relief C. Terminate copyright D. Transfer credit right	
For an application on registration of a design to be valid, the design must be:	D
A. New B. Have an individual character C. "New" of the design is checked by the examiner of the UK's Designs Registry (for free). D. Both of A&B	
When would the court likely NOT grant an early injunction?	A
A. If the owner delayed action B. If the product is physical C. If the infringer is unknown D. If it's a copyright case	
Who can prevent use of a commissioned private photograph in a newspaper?	A
A. The person who commissioned it B. The local council C. The printer D. The publishing house	
What would NOT be sufficient to prove passing-off?	B
A. Proof that the competitor's mark caused confusion in the market B. Evidence that the competitor's products were of inferior quality C. Evidence that the mark is descriptive of the goods D. Proof that the public recognized the mark as belonging to the owner	

What is the primary role of a trade mark for a business? A

- A. To help customers identify and distinguish products or services from competitors
- B. To describe the product's function
- C. To provide legal protection from competitors
- D. To denote the quality of the goods